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FEDERAL REGISTER

VOLUME 3 NUMBER 159

Washington, Tuesday, August 16, 1938

The President

EXECUTIVE ORDER

WITHDRAWAL OF PUBLIC LAND FOR LOOKOUT STATION

ARKANSAS

By virtue of and pursuant to the authority vested in me by the act of June 25, 1910, ch. 421, 36 Stat. 847, as amended by the act of August 24, 1912, ch. 369, 37 Stat. 497, it is ordered as follows:

SECTION 1. Executive Order No. 6964 of February 5, 1935, as amended, temporarily withdrawing certain lands for classification and other purposes, is hereby revoked as to the following-described tract of public land in Arkansas:

FIFTH PRINCIPAL MERIDIAN

T. 6 N., R. 14 W., sec. 27, W½NW¼SW¼, 20 acres.

SECTION 2. Subject to valid existing rights, the tract of land described in section 1 of this order is hereby temporarily withdrawn from settlement, location, sale or entry and reserved for use by the State of Arkansas as a site for a forest-fire lookout tower.

SECTION 3. Section 2 of this order shall continue in force until revoked by the President or by act of Congress.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
August 12, 1938.

[No. 7951]

[F. R. Doc. 38-2371; Filed, August 13, 1938; 12:08 p. m.]

EXECUTIVE ORDER

REVOCATION OF EXECUTIVE ORDER NO. 5341 OF MAY 2, 1930, WITHDRAWING PUBLIC LANDS

ARIZONA

By virtue of and pursuant to the authority vested in me by the act of June 25, 1910, ch. 421, 36 Stat. 847, as amended by the act of August 24, 1912, ch. 369, 37 Stat. 497, Executive Order No. 5341, of May 2, 1930, withdrawing public lands in Arizona pending a resurvey, and heretofore partially revoked, is hereby revoked as to the remainder of the lands affected thereby.

This order shall become effective upon the date of the official filing of the plat of the resurvey of the lands involved.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
August 12, 1938

[No. 7952]

[F. R. Doc. 38-2372; Filed, August 13, 1938; 12:08 p. m.]

EXECUTIVE ORDER 7953

ESTABLISHING LAKE ISOM MIGRATORY WATERFOWL REFUGE

TENNESSEE

By virtue of and pursuant to the authority vested in me as President of the United States, and in order to effectuate further the purposes of the Migratory Bird Conservation Act (45 Stat. 1222), it is ordered that the lands and waters acquired or to be acquired by the United States in the following-described areas in Lake and Obion Counties, Tennessee, be, and they are hereby, reserved and set apart, subject to existing valid rights, for the use of the Department of Agriculture as a refuge and breeding ground for migratory birds and other wildlife: *Provided*, That any private lands within the area described shall become part of the refuge hereby established upon acquisition of title thereto or control thereof by the United States:

First parcel:

Beginning at a point in the center of the Free Bridges Drainage District ditch, the line between Lake and Obion Counties, from which point a U. S. Geological Survey Primary Traverse Station marked 7W 1921 bears N. 83°45′ W., 52.28 chains distant, also from said point a 1¼ x 48″ galvanized iron pipe set for a witness

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corner bears N. 79°53′ W., 0.60 chain distant.

Thence from said initial point, in Lake County,
N. 79°53′ W., 5.75 chains;
N. 5°42′ E., 51.54 chains;
N. 88°30′ W., 10.33 chains, to a point in the center of a gravel road;
N. 12°55′ W., 30.77 chains;
N. 81°55′ W., 28.91 chains;
N. 4°05′ E., 35.22 chains;
N. 51°36′ E., 54.12 chains;
N. 2°29′ W., 22.32 chains;
N. 18°31′ E., 8.30 chains;
S. 83°31′ E., 20.08 chains;
N. 32°49′ E., 23.45 chains;
N. 83°27′ W., 32.73 chains;
N. 6°51′ E., 33.35 chains, to a point at intersection of gravel roads;
N. 6°28′ E., 14.35 chains, to a point in the center of a gravel road;
S. 89°49′ E., 46.01 chains;
N. 23°55′ E., 13.46 chains;
N. 6°28′ E., 7.45 chains;
N. 6°03′ E., 21.05 chains;
N. 1°56′ E., 9.23 chains;
N. 31°32′ E., 10.55 chains;
S. 89°05′ E., 9.35 chains;
N. 0°54′ W., 0.82 chain, to a point in center of the Free Bridges Road;
S. 87°54′ E., 6.02 chains, to a point in the center of said road;
N. 87°34′ E., 7.61 chains, to a point at the intersection of said road and a slough;

Thence down the center of slough with the meanders thereof,
S. 9°46′ W., 3.75 chains;
S. 7°42′ W., 7.51 chains;
S. 18°52′ E., 5.49 chains;
S. 18°46′ E., 1.54 chains;
S. 49°21′ E., 1.44 chains;
S. 20°48′ E., 7.44 chains;
S. 9°21′ E., 3.22 chains;
S. 5°59′ W., 5.44 chains;
S. 14°21′ W., 8.63 chains;

Thence leaving slough,
S. 87°13′ E., 4.05 chains, to a point in the center of the Free Bridges Drainage District ditch, and in the line between Lake and Obion Counties;

Thence with the center line of Free Bridges Drainage District ditch, the line between Lake and Obion Counties,
S. 2°53′ W., 0.92 chain;
S. 25°00′ W., 28.04 chains;
S. 3°50′ W., 5.94 chains;

Thence leaving said line,
N. 88°14′ W., 8.18 chains;
S. 4°47′ W., 6.14 chains;
S. 84°07′ E., 3.75 chains;
S. 4°45′ W., 30.06 chains, to a point in the center of the Free Bridges Drainage District ditch, and in the line between Lake and Obion Counties;

Thence in Obion County,
S. 4°45′ W., 50.73 chains;
N. 86°07′ W., 3.75 chains;
N. 84°51′ W., 14.07 chains, to a point in the center of the Free Bridges Drainage District ditch, and in the line between Lake and Obion Counties;

Thence with the center line of Free Bridges Drainage district ditch the line between Lake and Obion Counties,
S. 24°59′ W., 40.63 chains;

Thence in Lake County,
N. 85°33′ W., 6.71 chains;
S. 43°44′ W., 34.43 chains, to a point in center of a slough;

Thence down the center of slough with the meanders thereof,
S. 4°46′ W., 1.80 chains;
S. 14°06′ E., 2.80 chains;
S. 9°39′ E., 2.20 chains;
S. 17°02′ E., 7.61 chains;
S. 82°57′ E., 1.30 chains;
S. 50°29′ E., 1.43 chains;
S. 31°34′ E., 2.80 chains;
S. 10°00′ E., 4.20 chains;
S. 3°08′ E., 6.00 chains;
S. 6°14′ W., 2.30 chains;
S. 21°03′ E., 1.70 chains;
S. 3°55′ W., 1.90 chains;
S. 29°34′ W., 3.72 chains;
S. 1°38′ W., 1.64 chains;
S. 18°13′ W., 3.50 chains;
S. 0°41′ E., 4.61 chains;
S. 34°57′ W., 2.16 chains;
S. 24°16′ E., 4.89 chains, to a point in the center line of Free Bridges Drainage District ditch, and in the line between Lake and Obion Counties;

Thence with the center line of Free Bridges Drainage District ditch, the line between Lake and Obion Counties,
S. 14°36′ W., 16.84 chains;
S. 18°59′ W., 24.89 chains, to the place of beginning, containing 1,501.31 acres, more or less.

Second parcel:

Beginning at a point in the center of the Samburg-Dyersburg Road about six miles northeasterly of Ridgely, from which point a 1¼″ x 36″ galvanized iron pipe set for a witness corner bears S. 85°14′ E., 0.38 chain distant.

Thence along the center of the Samburg-Dyersburg Road with the meanders thereof,

N. 42°51′ E., 2.05 chains to a point in center of bridge;
N. 45°05′ E., 3.80 chains;
N. 36°23′ E., 4.10 chains;
N. 38°49′ E., 4.80 chains;
N. 32°32′ E., 4.96 chains;

Thence leaving said road,
S. 85°14′ E., 7.45 chains;
S. 5°46′ W., 16.43 chains;
N. 85°14′ W., 18.04 chains, to the place of beginning, containing 20.16 acres, more or less.

All bearings in the above description are referred to the true meridian as determined by solar observations during the course of surveys by the Bureau of Biological Survey, in 1935.

This refuge shall be known as the Lake Isom Migratory Waterfowl Refuge.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
August 12, 1938.

[F. R. Doc. 38-2373; Filed, August 13, 1938; 12:08 p. m.]

EO-7953

Rules, Regulations, Orders

TITLE 6—AGRICULTURAL CREDIT

COMMODITY CREDIT CORPORATION

[C. C. C. Wheat Form 1—Instructions—1938]

INSTRUCTIONS CONCERNING WHEAT LOANS

Commodity Credit Corporation has authorized the making of loans and the purchase of eligible paper secured by wheat stored on farms or in approved public grain warehouses. These instructions state the requirements of Commodity Credit Corporation with reference to making such loans on wheat and the purchase of notes secured by wheat.

1. *Definitions.*—For the purpose of these instructions and the notes and loan agreements or mortgages relating thereto, words used in the singular form shall be deemed to import the plural and vice versa, as the case may be, and unless the context clearly requires otherwise, the following terms shall be construed, respectively, to mean:

(a) *Eligible producer.*—Any person, partnership, association, or corporation, producing wheat as landowner, landlord, or tenant, provided that the acreage of total soil-depleting crops for 1938 on the farm producing such wheat has not exceeded 105 percent of the total soil-depleting acreage allotment as determined in accordance with the provisions of 1938 Agricultural Conservation Bulletin, issued April 16, 1938, as amended.[1]

(b) *Eligible wheat.*—Wheat of acceptable quality as defined below, which was produced in 1938, the beneficial title to which is and always has been in the eligible producer. The quality of such eligible wheat must be as follows:

(b–1) Wheat stored in approved public grain warehouses shall be of a grade No. 1 heavy; No. 1, No. 2, or No. 3 of the class Hard Red Spring; or of grade No. 1, No. 2, or No. 3 of the classes Durum, Red Durum, Hard Red Winter, Soft Red Winter or White, as defined in the Official Grain Standards of the United States, effective October 1, 1937, provided that wheat of the classes Hard Red Spring or Durum shall contain not more than 14½ percent moisture, and wheat of other eligible classes shall contain not more than 14 percent moisture.

(b–2) Wheat stored on the farm shall be of grade No. 1 heavy; No. 1 or No. 2 of class Hard Red Spring; or of grade No. 1, No. 2, or No. 3 of the classes Durum, Red Durum, Hard Red Winter, Soft Red Winter or White, as defined in the Official Grain Standards of the United States, effective October 1, 1937, provided that wheat of the classes Hard Red Spring or Durum shall contain not more than 13½ percent moisture and wheat of other eligible classes shall contain not more than 13 percent moisture.

(c) *Eligible storage* shall include public grain warehouses and farm storage meeting the following respective requirements:

(c–1) *Public grain warehouses* must be licensed under the provisions of the U. S. Warehouse Act or otherwise meet the requirements of Commodity Credit Corporation, and must have executed warehouse agreements with Commodity Credit Corporation. Such warehouses may be situated either at terminal or country points. The term "terminal warehouse", as used herein, shall include elevators and warehouses operating at concentration points which normally receive from producers, cooperative associations, grain dealers, and others, carlots or larger quantities of wheat for storage and reshipment, and shall include elevators and warehouses normally considered as subterminal, which, in addition to the above, also receive wheat directly from producers or others by wagon or truck. The term "country warehouse", as used herein, shall include elevators and warehouses which receive wheat exclusively delivered in wagons or trucks by producers or others at primary shipping points.

(c–2) *Farm storage* shall consist of farm bins and granaries which are of such substantial and permanent construction as to afford safe storage of the wheat for a period of 2 years and permit effective fumigation for the destruction of insects and afford protection against rodents, other animals, thieves, and weather, as determined by the County Agricultural Conservation Committees.

(d) *Lending agency.*—Any bank, cooperative marketing association, or other corporation, partnership, or person making loans in accordance with these instructions upon 1938 CCC Wheat Form B, which has executed the Contract to Purchase on 1938 CCC Wheat Form E. (A Loan Agency of the Reconstruction Finance Corporation is not included within this definition.)

(e) *Eligible paper.*—For the purpose of the Contract to Purchase (1938 CCC Wheat Form E), eligible paper shall consist of notes of producers with loan agreements upon 1938 CCC Wheat Form B, secured by warehouse receipts representing wheat in existence and undamaged from the perils of fire, lightning, explosion, cyclone, tornado, windstorm, and flood, dated subsequent to July 15, 1938, and prior to January 1, 1939, and executed in accordance with these instructions with State documentary revenue stamps affixed thereto where required by law. (Notes executed by an administrator, executor, or trustee will be acceptable only where valid in law, and all such notes must be submitted for direct loans in accordance with sec. 16 hereof.)

2. *Areas in which loans will be made.*—Loans shall be made on eligible wheat *stored in approved public grain warehouses only* at New Orleans, La., and in the following States:

Arizona, Arkansas, California, Colorado, Delaware, Idaho, Illinois, Indiana, Iowa, Kansas, Kentucky, Maryland, Michigan, Minnesota, Missouri, Montana, Nebraska, Nevada, New Mexico, New York, North Dakota, Ohio, Oklahoma, Oregon, Pennsylvania, South Dakota, Tennessee, Texas, Utah, Virginia, Washington, West Virginia, Wisconsin, and Wyoming.

Loans will be made on eligible wheat stored on farms only in the following counties:

All counties in Colorado, Idaho, Illinois, Indiana, Iowa, Kansas, Michigan, Minnesota, Missouri, Montana, Nebraska, Nevada, North Dakota, Ohio, Oregon, South Dakota, Utah, Washington, Wisconsin, and Wyoming; and in the following counties of the following States:

Oklahoma.—Alfalfa, Beaver, Beckham, Blaine, Caddo, Canadian, Cimarron, Cleveland, Comanche, Cotton, Craig, Creek, Custer, Dewey, Ellis, Garfield, Grady, Grant, Greer, Harmon, Harper, Jackson, Kay, Kingfisher, Kiowa, Lincoln, Logan, McClain, Major, Mayes, Noble, Nowata, Okfuskee, Oklahoma, Okmulgee, Osage, Ottawa, Pawnee, Payne, Pottawatomie, Rogers, Roger Mills, Texas, Tillman, Tulsa, Wagoner, Washington, Washita, Woods, and Woodward.

Texas.—Archer, Armstrong, Bailey, Baylor, Briscoe, Carson, Castro, Childress, Clay, Cochran, Collingsworth, Cottle, Crosby, Dallam, Deaf Smith, Dickens, Donley, Floyd, Foard, Garza, Gray, Hale, Hall, Hansford, Hartley, Hardeman, Haskell, Hemphill, Hockley, Hutchinson, Kent, King, Knox, Lamb, Lipscomb, Lubbock, Lynn, Moore, Motley, Ochiltree, Oldham, Parmer, Potter, Randall, Roberts, Sherman, Stonewall, Swisher, Terry, Throckmorton, Wheeler, Wichita, Wilbarger, Yoakum, and Young.

3. *Amount of loans.*—(a) *Terminal markets.*—Basic loan values on wheat of the designated grades and subclasses stored in approved public grain warehouses at the following terminal markets shall be as follows:

[1] 3 F. R. 918 DI.

Market	Grade and subclass	Loan value per bushel
Kansas City, Mo., and Kansas City, Kans.[1]	No. 2 Hard Winter	$0.72
	No. 2 Red Winter	.70
Omaha, Nebr., and Council Bluffs, Iowa	No. 2 Hard Winter	.71
Chicago, Ill.[2]	No. 2 Hard Winter	.77
	No. 2 Red Winter	.75
	No. 1 Northern Spring	.79
St. Louis, Mo., and East St. Louis, Ill.	No. 2 Hard Winter	.75
	No. 2 Red Winter	.73
Minneapolis, St. Paul, Duluth, Minn., and Superior, Wis.	No. 1 Dark Northern Spring	.81
	No. 1 Northern Spring	.79
	No. 2 Hard Winter	.75
	No. 2 Amber Durum	.72
	No. 2 Red Durum	.55
Portland, Oreg., and Seattle, Wash.	No. 1 Soft White, White Club, Western White, Hard Winter, or Western Red.	.67
San Francisco and Los Angeles, Calif.	No. 1 Soft White, White Club, Western White, Hard Winter, or Western Red.	.71
Galveston and Houston, Tex., and New Orleans, La.	No. 2 Hard Winter	.77
	No. 2 Red Winter	.75

[1] The loan value of wheat stored at St. Joseph, Mo., shall be the same as at Kansas City.
[2] The loan value of wheat stored at Milwaukee, Wis., shall be the same as at Chicago.

The foregoing schedule of loan values applies to wheat delivered to any designated terminal market in carload lots which has been shipped by rail from a country shipping point to one of the designated terminal markets, as evidenced by paid freight bills duly registered for transit privileges. Otherwise, a deduction of 4 cents per bushel shall be made to cover approximately the difference between the outbound local and proportional rates from the designated terminal market.

(b) *Country points in western and central United States.*—Except for the States and counties hereinafter set forth, Commodity Credit Corporation will determine the loan value on wheat in storage on the farm or in country or subterminal warehouses by deducting from the designated terminal market value an amount equal to the all-rail interstate freight rate (in effect on June 1, 1938) from the country or subterminal warehouse point, or the shipping point designated by the producer, to such terminal market plus 4 cents per bushel. Each approved warehouse will be advised as to the loan values applicable to wheat stored in such warehouse. Producers may obtain from the county committees the loan values applicable to wheat stored on each farm and in public grain warehouses.

(c) *States and counties.*—The loan values on wheat of the designated grades and subclasses, in storage on farms (where permitted) and at all storage points in the counties named below, shall be as follows:

State	Counties	Grade and subclass	Loan value per bushel
Idaho	All counties south of Idaho County	No. 1 Soft or Western White	$0.50
		No. 2 Hard Winter	.50
Utah	All counties	No. 1 Soft or Western White	.50
		No. 2 Hard Winter	.50
Indiana	All counties, except Lake, Newton, Benton, Porter, Jasper, White, La Porte, Pulaski, St. Joseph, Marshall, Fulton, Elkhart, Kosciusko, and Starke.	No. 2 Red Winter	.67
Michigan	All counties	No. 2 Red Winter	.68
		No. 2 Soft White	.68
Ohio	All counties	No. 2 Red Winter	.70
Kentucky	All counties (no farm storage)	No. 2 Red Winter	.76
Tennessee	All counties (no farm storage)	No. 2 Red Winter	.81
West Virginia	All counties (no farm storage)	No. 2 Red Winter	.78
Virginia	All counties (no farm storage)	No. 2 Red Winter	.78
Maryland	All counties (no farm storage)	No. 2 Red Winter	.70
Delaware	All counties (no farm storage)	No. 2 Red Winter	.70
Pennsylvania	All counties (no farm storage)	No. 2 Red Winter	.72
New York	All counties (no farm storage)	No. 2 Red Winter	.73
		No. 2 Soft White	.73

(d) *Freight.*—No freight will be paid by Commodity Credit Corporation unless it ships the wheat. If and when any of the pledged wheat is shipped by Commodity Credit Corporation from other than the designated terminal markets, an allowance will be made for the reshipping value of any paid freight bills duly registered for transit privileges which are made available for use by Commodity Credit Corporation.

4. *Variations for other grades.*—Loan values for eligible grades and subclasses other than designated above shall be at the following schedule of premiums and discounts:

(a) The loan value on No. 1 Wheat shall be 1 cent more than the loan value on No. 2.

(b) The loan value on No. 3 Wheat shall be 3 cents less than the loan value on No. 2.

(c) The loan value on No. 1 Heavy Dark Northern Spring shall be 1 cent over the loan value for No. 1 Dark Northern Spring, and the loan value on No. 1 Heavy Northern Spring shall be 1 cent over the loan value for No. 1 Northern Spring, and the loan value on No. 1 Red Spring shall be 2 cents less than the loan value on No. 1 Northern Spring.

(d) Where the loan value is based upon No. 1 Wheat the loan value on No. 2 shall be at a discount of 2 cents under No. 1, and the loan value on No. 3 Wheat shall be 5 cents under No. 1.

(e) The loan value on Dark Hard Winter shall be at 1 cent more than the loan value on Hard Winter, and the loan value on Yellow Hard Winter shall be 2 cents less than the loan value on Hard Winter.

(f) The loan value on Hard White shall be 1 cent more than the loan value on Soft White.

(g) The loan value on Durum Wheat shall be 7 cents less than the loan value on Amber Durum Wheat.

(h) The discount for smut determined on a percentage basis shall be as follows:

	Cents per bushel
½ % to 1 %, inclusive	1.05
1½ % to 3 %, inclusive	1.35
3½ % to 7 %, inclusive	1.95
7½ % to 15 %, inclusive	2.55

The discounts for smut and garlic determined on a degree basis shall be as follows:

	Cents per bushel
Light smutty	3
Smutty	18
Light garlicky	3
Garlicky	18

5. *Determination of dockage, smut, and garlic.*—The percentage of dockage shall be determined in accordance with the Official Grain Standards of the United States and the weight of said dockage shall be deducted from the gross weight of the wheat in determining the net quantity available for loan. The smut condition of wheat shall be determined on a percentage basis in accordance with the Official Grain Standards of the United States in Idaho, Oregon, Utah, Washington, and the following counties in Montana: Lincoln, Flathead, Sanders, Lake, Mineral, Missoula, Powell, Ravalli, Granite, Deer Lodge, Silver Bow, Jefferson, and Beaverhead. In the foregoing area the quantity of smut shall be stated in percentage in accordance with the method described in paragraph (a) under "Smutty Wheat" of the Official Grain Standards of the United States and shall be stated in terms of half percent, full percent, or whole and half percent, as the case may be, and the quantity of smut so determined in pounds shall be deducted from the weight of clean wheat after deduction of other dockage. Elsewhere the smut condition of wheat shall be determined on a degree basis in accordance with the Official Grain Standards of the United States, provided that in the case of wheat which has an unmistakable odor of smut, or which contains balls, portions of balls, or spores of smut in excess of a quantity equal to 14 balls but not in excess of a quantity equal to 30 balls of average size in 250 grams of wheat, there shall be added to and made a part of the grade designation, the words

"Light smutty"; provided further, that in the case of wheat which contains balls, portions of balls, or spores of smut, in excess of a quantity equal to 30 balls of average size in 250 grams of wheat, there shall be added to and made a part of the grade designation, the word "Smutty." The garlic condition of wheat shall be determined in accordance with the Official Grain Standards of the United States, and such condition shall be made a part of the grade designation by adding the words "Light garlicky" or the word "Garlicky," as determined under such standards.

6. *Determination of quantity of wheat.*—Loans shall be made at values expressed in cents per bushel, a bushel being determined to be 60 pounds of clean wheat free of dockage, when determined by weight, or 1.25 cubic feet of wheat testing 60 pounds per bushel when determined by measurement. In determining the quantity of wheat in farm storage by measurement, fractional pounds of the bushel test weight for wheat testing less than 60 pounds per bushel will be disregarded, and the quantity determined as above will be the following percentages of the quantity determined for 60-pound wheat:

	Percent
For wheat testing 59 lb. or over, but less than 60 lb.	98
For wheat testing 58 lb. or over, but less than 59 lb.	97
For wheat testing 57 lb. or over, but less than 58 lb.	95
For wheat testing 56 lb. or over, but less than 57 lb.	93
For wheat testing 55 lb. or over, but less than 56 lb.	92

7. *Maturity and interest rate.*—Loans on 1938 CCC Wheat Form A will mature May 31, 1939. Loans on 1938 CCC Wheat Form B will mature 7 months from the respective dates thereof. All loans will bear interest at the rate of 4 percent per annum.

8. *Public warehouses.* — Commodity Credit Corporation will accept only negotiable, insured warehouse receipts or receipts in form required by statute covering wheat pledged as collateral to notes on 1938 CCC Wheat Form B issued by any public grain warehouse approved by the Loan Agency of the Reconstruction Finance Corporation serving the district in which such warehouse is located. Warehousemen are advised to communicate with such Loan Agency of the Reconstruction Finance Corporation concerning approval. Each approved warehouse must enter into an agreement with the Commodity Credit Corporation which may be obtained from the Loan Agency. This agreement will limit the warehouseman's lien and impose additional obligations to Commodity Credit Corporation. All wheat pledged as security for a note must be in the same warehouse, and each producer must arrange for the storage of wheat in an approved warehouse either at a country or terminal point. Producers should arrange for cleaning wheat placed in storage containing in excess of 2% dockage in order to avoid excessive charges for transportation, conditioning, and storage. Wheat containing smut or garlic should not be commingled by the warehouseman with wheat free from such smut or garlic. A list of the approved warehouses and their locations will be available at any Loan Agency of the Reconstruction Finance Corporation listed in section 18 hereof:

9. *Warehouse receipts.*—Commodity Credit Corporation will accept only negotiable, insured warehouse receipts, or receipts in form required by statute, dated on or prior to the date of the related note and properly assigned by an endorsement in blank so as to vest title in the holder, or issued to bearer, executed by warehousemen who are not owners of the wheat. Commodity Credit Corporation will not accept warehouse receipts indicating any lien for charges prior to unloading in or delivery to the warehouse issuing such receipts. Lien for storage charges will be recognized by Commodity Credit Corporation only from July 1, 1938, or the dates of the warehouse receipts, whichever is later. Such receipts must set out in their written or printed terms the gross weight or bushels, grade, subclass, moisture content, degree of smut or garlic and dockage of the wheat represented thereby, and all other facts and statements required to be stated in the written or printed terms of a negotiable warehouse receipt under the provisions of Section 2 of the Uniform Warehouse Receipts Act; provided, warehouse receipts in statutory form must be accompanied by a certificate of the warehouseman identified to the warehouse receipt, setting forth the information required above which may not be included in such statutory receipts, including, if desired, the undertaking of the warehouseman covering insurance and freight bills; provided further, the smut or garlic content of wheat stored in the area set forth in section 5 hereof shall be expressed in percentages. Unless the warehouse receipts are stamped or printed "Insured" there must be attached, or included in, the certificate of the warehouseman the statement that the wheat is insured for not less than market value against the hazards of fire, lightning, explosion, and windstorm, cyclone and tornado. In the case of warehouse receipts issued by any terminal warehouse, each warehouse receipt must either show the protein content, as determined by a recognized protein-testing laboratory approved by the terminal market, or be accompanied by an original or duplicate certificate issued by such laboratory showing the protein content and properly identified as to the wheat covered thereby either by the respective warehouse receipt number, or the bin number and warehouse description, or by car number. Each such terminal warehouse receipt must also be accompanied by an original or duplicate official weight and inspection certificate properly identified to the wheat covered thereby. Such inspection certificate must be issued by an inspector licensed under the U. S. Grain Standards Act. In the case of wheat delivered by rail to any terminal market designated in section 3 (a) hereof, the warehouse receipts shall also be accompanied by the original paid freight bills duly registered for transit privileges, provided, that Commodity Credit Corporation will accept in lieu of such bills, warehouse receipts on which a legend, signed by the warehouseman, has been stamped or typewritten substantially in the following form or certificate of such warehouseman containing such an undertaking:

> The wheat represented hereby was received by rail freight as evidenced by original paid freight bill which has been officially registered for transit and will be held and kept alive, within statutory limitations, for the benefit of the holder hereof.
>
> ---
>
> *Warehouseman.*

10. *Farm storage.*—Wheat stored on the farm must have been stored in the granary at least 30 days prior to its inspection for measurement, sampling, and sealing. In accordance with regulations issued by the Secretary of Agriculture, the County Agricultural Conservation Committees will inspect and approve storage facilities and will arrange for measuring, sampling, grading, and sealing the wheat collateral in approved structures. Chattel mortgages covering farm-stored wheat must be executed and filed in accordance with the applicable State law. Producers may obtain information and assistance from the County Agricultural Conservation Committees in regard to the execution and filing of such chattel mortgages. Where the borrower is a tenant farmer, and the wheat collateral is stored on the farm, the expiration date of the lease shall be given in section 3 (c) of the chattel mortgage (1938 CCC Wheat Form A). If the expiration date of the lease is prior to August 1, 1939, the landlord shall execute the Consent for Storage, section 11 of 1938 CCC Wheat Form A. The consent agreement shall also be signed by any other party or parties entitled to possession. Each producer must designate in section 5 of the Mortgage (1938 CCC Wheat Form A) a shipping point reasonably convenient for the delivery of the wheat as determined by the county committee. Notes and mortgages will not be acceptable which provide a shipping point other than the normal shipping point customarily used by the producers in the locality in which the wheat was produced. A separate note and chattel mortgage must be submitted for wheat stored on each quarter section of land. All loans on farm-stored wheat will be made directly by Commodity Credit Corporation through the Loan Agency of Reconstruction Finance Corporation serving the district in which the mortgaged wheat is stored. Commodity Credit Corporation will pay 7 cents per bushel for storing the wheat

for the period ending May 31, 1939, or the date of the delivery of such wheat to Commodity Credit Corporation, whichever is later; provided such payment will be conditioned upon the delivery of the mortgaged wheat of the quantity, grade and subclass described in the chattel mortgage.

11. *Liens.*—The Wheat collateral must be free and clear of all liens except in favor of the lienholders listed in the space provided therefor in 1938 CCC Wheat Form A or B. The names of the holders of all existing liens on the pledged or mortgaged wheat, such as landlord, laborers, threshers, or mortgagees, must be listed in the space provided therefor in the mortgage or loan agreement. The waiver and consent to the pledge or mortgage of the wheat and the payment of the proceeds of the loan and the proceeds of the sale of the wheat solely to the producer as contained in the mortgage or loan agreement must be signed personally by all lienholders listed or by their agents, whose duly executed authority must be attached firmly; or, if corporations, by the designated officer thereof customarily authorized to execute such instruments, in which case the duly executed authority need not be attached. The producer may direct in the Letter of Transmittal (1938 CCC Wheat Form C) that the proceeds check for a direct loan from Commodity Credit Corporation be made payable to him and/or such other person or concern as he may direct thereon. Producers should read carefully all real-estate or other mortgages previously given by them in order to be sure that crops are not covered thereby. Any fraudulent misrepresentation of fact made in the execution of the note and mortgage or loan agreement and related forms shall render the producer personally liable for the amount of the loan and subject to the provisions of the United States Criminal Code.

12. *Insurance.*—(a) *Wheat stored on farms.*—All producers shall provide insurance on wheat stored on the farm for not less than the amount of the loan with accrued interest to maturity. Such insurance shall be evidenced by a certificate in the form printed at the end hereof, issued by a company or association licensed to do business in the State in which the wheat is stored. The insurance coverage may be obtained through the customary channels and the form of certificate required shall be furnished by the agent writing same.

(b) *Wheat stored in approved warehouses.*—With respect to wheat stored in approved public grain warehouses the warehousman shall provide insurance against the perils of fire, lightning, explosion, and windstorm, cyclone, and tornado for the full market value thereof so long as receipts are outstanding.

(c) *Insurance carried by Commodity Credit Corporation.*—In addition to the foregoing, Commodity Credit Corporation has obtained a blanket insurance policy which protects it in the event of any loss by or in consequence of damage to or destruction of the pledged or mortgaged wheat arising from fire and lightning; cyclone, tornado, windstorm and hail; theft and wrongful conversion; flood and explosion. This policy is in the nature of errors and omissions, and excess insurance, and the cost is nine-tenths of 1 cent per $100 per month on the daily average balance of loans outstanding.

Banks and other lending agencies desirous of insurance coverage in addition to the primary insurance provided by the warehouse receipts securing notes on 1938 CCC Wheat Form B shall obtain such coverage at their own expense.

Banks and other lending agencies desiring coverage under the Corporation's blanket policy should write to Commodity Credit Corporation, Washington, D. C., and appropriate instructions will be issued, together with the necessary forms for reporting thereunder.

13. *County agricultural conservation committees.*—The forms 1938 CCC Wheat Forms A and B contain a certificate which must be signed in each instance by a member of a county agricultural conservation committee of the county in which the wheat was produced.

14. *Forms.*—(a) *Wheat stored on farms.*—The following documents must be submitted:

(I) Wheat Producer's Note and Chattel Mortgage (1938 CCC Wheat Form A);

(II) Producer's Letter of Transmittal (1938 CCC Wheat Form C)

(III) Certificate of Insurance

(b) *Wheat stored in approved warehouses.*—The following documents must be submitted:

(I) Wheat Producer's Note and Loan Agreement. (1938 CCC Wheat Form B);

(II) Producer's Letter of Transmittal (1938 CCC Wheat Form C) or Lending Agency's Letter of Transmittal (1938 CCC Wheat Form D);

(III) Warehouse receipts issued by an approved warehouse and accompanying documents as provided in section 9 hereof.

(c) *Lending agencies.*—Banks or others acting as lending agencies must also obtain and use the following forms:

(I) Contract to Purchase (1938 CCC Wheat Form E);

(II) Schedule of Repayments (1938 CCC Wheat Form F).

15. *Source and preparation of documents.*—Forms will be obtainable from any county agricultural conservation committee in the areas designated in section 2 hereof and any Loan Agency of the Reconstruction Finance Corporation listed in section 18 hereof. All blanks in 1938 CCC Wheat Forms A and B must be filled in with ink, typewriter, or indelible pencil, and no documents containing additions, alterations, or erasures shall be accepted by Commodity Credit Corporation.

16. *Direct loans.*—Loans upon the security of wheat stored on the farm will only be made directly by Commodity Credit Corporation and such loans must be submitted to the Loan Agency of Reconstruction Finance Corporation serving the district in which the wheat is stored. It is contemplated that loans secured by wheat stored in an approved public grain warehouse will ordinarily be obtained from banks and other local lending agencies which, in turn, may sell the paper evidencing such loans to Commodity Credit Corporation. Producers may also obtain loans directly from Commodity Credit Corporation secured by wheat in such public warehouses. Such notes shall be made payable to Commodity Credit Corporation and shall be delivered to a Loan Agency of the Reconstruction Finance Corporation serving the district in which the wheat is stored. Paper for direct loans tendered by mail, in person, or otherwise should be accompanied by a Producer's Letter of Transmittal on 1938 CCC Wheat Form C, in duplicate, and must be delivered or postmarked prior to January 1, 1939. The triplicate copy of this letter shall be retained by the producer as a memorandum. Upon delivery of all necessary documents properly executed and upon approval of the loan by the manager of the Loan Agency, payment shall be made pursuant to the Letter of Transmittal.

17. *Purchase of loans.*—Commodity Credit Corporation shall purchase eligible paper, as defined above, only from Lending Agencies which have executed and delivered to the Loan Agency to which notes are submitted Contract to Purchase 1938 CCC Wheat Form E, obtainable only from Loan Agencies of the Reconstruction Finance Corporation. Under the terms of this contract, lending agencies are required to report monthly on 1938 CCC Wheat Form F all payments or collections on producer's notes held by them, and to remit promptly to Commodity Credit Corporation, Washington, D. C., an amount equivalent to one and one-half percent (1½%) interest per annum on the principal amount collected from the date of the note to the date of payment. Such payments should be accompanied by the respective loan agreements which shall be detached from the notes for this purpose. Such eligible paper must be tendered to the Loan Agency of Reconstruction Finance Corporation serving the district in which the pledged wheat is stored 30 days prior to the respective maturities of such paper.

18. *Reconstruction Finance Corporation Loan Agencies.*—The locations of the Loan Agencies of the Reconstruction Finance Corporation previously referred to herein and the districts served by

them under these instructions are shown below:

Loan Agency	*District served*
Chicago	Area in 7th Federal Reserve District attached to Chicago.
Cleveland	Area included in 4th Federal Reserve District.
Dallas	Area in 11th Federal Reserve District attached to Dallas and El Paso.
Denver	Area in 10th Federal Reserve District attached to Denver.
Detroit	Area in 7th Federal Reserve District attached to Chicago.
Houston	Area in 11th Federal Reserve District attached to Houston.
Kansas City	Area in 10th Federal Reserve District attached to Kansas City.
Little Rock	Area in 8th Federal Reserve District attached to Little Rock and Memphis.
Los Angeles	Area in 12th Federal Reserve District attached to Los Angeles.
Louisville	Area in 8th Federal Reserve District attached to Louisville.
Minneapolis	Area included in 9th Federal Reserve District.
Nashville	Area in 6th Federal Reserve District attached to Nashville.
New Orleans	Area in 6th Federal Reserve District attached to New Orleans.
New York	Area included in 2d Federal Reserve District.
Oklahoma City.	Area in 10th Federal Reserve District attached to Oklahoma City.
Omaha	Area in 10th Federal Reserve District attached to Omaha.
Philadelphia	Area in 3d Federal Reserve District attached to Philadelphia.
Portland	Area in 12th Federal Reserve District attached to Portland.
Richmond	Area included in 5th Federal Reserve District.
St. Louis	Area in 8th Federal Reserve District attached to St. Louis.
San Antonio	Area in 11th Federal Reserve District attached to San Antonio.
San Francisco.	Area in 12th Federal Reserve District attached to Salt Lake City and San Francisco.
Spokane	Area in 12th Federal Reserve District attached to Seattle and Spokane.

19. *Release of collateral held by Commodity Credit Corporation.*—A producer may obtain the return of notes secured by wheat upon his request in writing and payment of the principal amount due thereon with accrued interest and proper charges. The producer's note and mortgage or loan agreement, with the warehouse receipt(s) (if any) securing same, will be transmitted to an approved bank with instructions to deliver such documents to the producer, or his agent, upon the payment of the full amount due thereon with accrued interest and proper charges. Where such paper is sent to an approved bank for collection, instructions shall be given to return such paper to the sender if payment and release are not effected within 15 days. All charges and expenses of the collecting bank shall be paid by the producer. If the note is secured by farm-stored wheat, county agricultural conservation committees will be requested to release the mortgage of record after payment in full either by the filing of an instrument of release or by a margin release on the county records. Partial releases of collateral will not be permitted.

If the producer's note is made payable directly to Commodity Credit Corporation and he desires to obtain the release of collateral upon payment, as aforesaid, he should notify the Federal Reserve Bank or branch thereof serving the district in which the wheat is stored as above provided. If his note was made payable to a payee other than Commodity Credit Corporation the producer should notify the payee named therein.

CERTIFICATE OF INSURANCE WHEAT IN FARM STORAGE

Certificate No. _____

Amount, $_____
Premium, $_____
_____
Term _____

Agency at _____

1. This Certifies that in consideration of _____ dollars premium (subject to all the terms and conditions of Open Policy No. ____, issued by this Company or Association) _____ does insure
(Company or Association)
against all direct loss or damage by fire, lightning, inherent explosion, windstorm, cyclone, tornado, and hail* in the sum of _____ dollars on _____ bushels of wheat stored and sealed in the possession of the assured in structure(s) situated on the _____ quarter of section _____, township _____, range _____, County of _____, State of _____ for the term of one (1) year from the _____ day of _____, 19__, at 12 o'clock noon, to the _____ day of _____, 19__, at 12 o'clock noon, said structure(s) having been inspected and sealed in accordance with regulations issued by the Secretary of Agriculture pursuant to the Agricultural Adjustment Act of 1938.

2. Any loss which may be ascertained and proven to be due the insured under this contract shall be payable to the insured and/or Commodity Credit Corporation as their respective interests may appear.

SPECIAL (WHEAT) ENDORSEMENT PROVIDING THE BASIS OF ADJUSTMENT IN CASE OF LOSS ON WHEAT MORTGAGED TO COMMODITY CREDIT CORPORATION

3. All or any part of the wheat described in this policy and/or certificate having been mortgaged to Commodity Credit Corporation as security for a loan by said Commodity Credit Corporation, it is a condition of this insurance that in event of loss or damage to any of such mortgaged wheat the basis of adjustment shall be the actual cash value at the time and place of the loss, as set out elsewhere in the printed conditions of this policy or certificate, except that if such actual cash market value is less than the loan value per bushel, plus accrued interest at four percent (4%) per annum, then such actual cash value shall be disregarded and the value of any wheat so mortgaged shall be deemed to be the loan value per bushel plus interest thereon.

4. The provisions of this endorsement shall apply and cover until the note has been paid and/or released and/or the wheat sold.

5. This special adjustment clause does not apply to any wheat not mortgaged in the manner hereinbefore described.

*Optional.

6. In witness whereof, this Company has executed and attested these presents, but this certificate shall not be valid until countersigned by a duly authorized agent of this company or association.

_____
President.

_____
Secretary.

Countersigned _____ this _____ day of _____, 19__

_____
Agent.

[SEAL] M. R. BUCK,
Assistant Secretary.

[F. R. Doc. 38-2366; Filed, August 13, 1938; 9:40 a. m.]

FARM CREDIT ADMINISTRATION

[FCA 98]

AUTHORIZATION FOR JOINT STOCK LAND BANKS TO HOLD TITLE TO REAL ESTATE FOR A LONGER PERIOD THAN FIVE YEARS

AUGUST 12, 1938.

Sec. 3.10 of Title 6, Code of Federal Regulations, is amended to read as follows:

"SEC. 3.10 *Authorization for joint stock land banks to hold title to real estate for a longer period than five years.*—Authorization is given, severally and not jointly, to W. E. Rhea, Deputy Land Bank Commissioner, and John D. Lawson, Assistant to Chief, Joint Stock Land Bank Section, to authorize (on such terms as either of them shall direct) joint stock land banks to hold title and possession of real estate for a period longer than five years pursuant to paragraph Fourth (b) of section 13 of the Federal Farm Loan Act (39 Stat. 372, 12 U. S. C. 781 "Fourth"), as amended. (E. O. 6084, March 27, 1933, 6 CFR 1.1 (12).) [FCA Order No. 231, August 12, 1938.]"

[SEAL] W. I. MYERS,
Governor.

[F. R. Doc. 38-2382; Filed, August 15, 1938; 11:17 a. m.]

[FCA 99]

APPROVAL BY ASSISTANT TO CHIEF, JOINT STOCK LAND BANK SECTION, OF ACTS OF RECEIVERS OF JOINT STOCK LAND BANKS

AUGUST 12, 1938.

Sec. 3.8 of Title 6, Code of Federal Regulations, is amended to read as follows:

"SEC. 3.8 *Approval by Assistant to Chief, Joint Stock Land Bank Section, of acts of receivers of joint stock land banks.*—John D. Lawson, Assistant to Chief, Joint Stock Land Bank Section, is hereby authorized to approve, on such terms as he shall direct, the acts pursuant to section 29 of the Federal Farm Loan Act (39 Stat. 381, 12 U. S. C. 961-967) of any receiver of any joint stock land bank appointed under the provisions of said section 29 in the event that

Deputy Commissioner W. E. Rhea is absent or unable, for any reason, to exercise the authority vested in him. (E. O. 6084, March 27, 1933, 6 CFR 1.1 (12).) [FCA Order No. 232, August 12, 1938.]"

[SEAL] W. I. MYERS,
Governor.

[F. R. Doc. 38-2383; Filed, August 15, 1938; 11:17 a. m.]

TITLE 7—AGRICULTURE

BUREAU OF PLANT INDUSTRY

AMENDMENTS TO REGULATIONS ISSUED JOINTLY, NOVEMBER 19, 1930, BY THE ACTING SECRETARY OF AGRICULTURE AND THE SECRETARY OF THE TREASURY, PURSUANT TO THE FEDERAL SEED ACT OF AUGUST 24, 1912, AS AMENDED

EFFECTIVE ON AND AFTER AUGUST 15, 1938

The Secretary of the Treasury and the Secretary of Agriculture have determined that Regulation 8 of the regulations jointly issued November 19, 1930, under the provisions of the Federal Seed Act of August 24, 1912, as amended August 11, 1916, and April 26, 1926, should be amended and the same is hereby amended by revising sub-paragraphs (a), (b), (c), and (d) thereof and adding thereto a new sub-paragraph (e), so that said regulation 8 shall read as follows:

Regulation 8.—Kinds and Proportions of Seeds To Be Colored

(a) Except as provided in sub-paragraphs (c) and (d) of this regulation, the importation into the United States of seeds of alfalfa or red clover, or any mixture of seeds containing 10 per cent or more of the seeds of alfalfa or red clover, is prohibited, unless 5 per cent of the seeds in each container are stained with the color specified in sub-paragraph (b) of this regulation; Provided, That seeds of Canadian origin shall be stained one per cent.

(b) Seed of Canadian origin shall be stained iridescent violet. Except as provided in (d) or by notices issued by the Secretary of Agriculture, under Sec. 5 of the act, seed originating in any foreign country other than Canada shall be stained green.

(c) Whenever the Secretary of Agriculture, after a public hearing, determines that seed of alfalfa or red clover from any foreign country or region is not adapted for general agricultural use in the United States, he shall publish such determination and, on and after the expiration of 90 days after the date of such publication and until such determination is revoked, the importation into the United States of any such seeds or of any mixture of seeds containing 10 per cent or more of such seeds of alfalfa or red clover is prohibited, unless at least 10 per cent of the seeds in each container is stained a red color.

(d) The importation into the United States of seed of alfalfa or red clover or any mixture of seeds containing 10 per cent or more of the seed of alfalfa or red clover is prohibited unless at least 10 per cent of the seed in each container is stained red: (1) when the origin of such alfalfa or red clover seed is not established; (2) when such alfalfa or red clover seed is of two or more origins not subject to the same color designation; (3) when such alfalfa or red clover seed consists of seed grown in a foreign country commingled with seed of the same kind grown in the United States; or (4) when such alfalfa or red clover seed has been colored, prior to being offered for entry, with a color different from that required under this regulation.

(e) The live, pure seed requirements of the act shall apply to mixtures of seed, as a whole, and to each kind or variety of seed therein which is specifically subject to the act and a principal component part of the mixture.

Done at the City of Washington, this 12th day of August, 1938. Witness our hands and the seals of our respective Departments.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[SEAL] STEPHEN B. GIBBONS,
Acting Secretary of the Treasury.

[F. R. Doc. 38-2370; Filed, August 13, 1938; 11:45 a. m.]

TITLE 9—ANIMALS AND ANIMAL PRODUCTS

BUREAU OF ANIMAL INDUSTRY

[Amendment 22 to Declaration No. 12 [1]]

DECLARING NAMES OF COUNTIES PLACED IN MODIFIED TUBERCULOSIS-FREE ACCREDITED AREAS

AUGUST 1, 1938.

In accordance with Section 2 of Regulation 7 of B. A. I. Order 309, as amended September 10, 1936,[2] the following named counties in the States named having completed the necessary retests for reaccreditation, are hereby continued in the status of "Modified Accredited Areas" until the date given opposite each county named.

Alabama: Baldwin, August 1, 1941; Escambia, August 1, 1941; Perry, August 1, 1941.

Arkansas: Chicot, August 1, 1941; Jackson, August 1, 1941; Jefferson, August 1, 1941; Woodruff, August 1, 1941.

Colorado: Cheyenne, August 1, 1941; Lake, August 1, 1941.

Georgia: Bartow, August 1, 1941; Brooks, August 1, 1941; Bryan, August 1, 1941; Camden, August 1, 1941; Cherokee, August 1, 1941; Clinch, August 1, 1941; Coffee, August 1, 1941; Glynn, August 1, 1941; Cordon, August 1, 1941; Liberty, August 1, 1941; Muscogee, August 1, 1941; Pickens, August 1, 1941; Randolph, August 1, 1941.

Idaho: Bannoch, August 1, 1941; Boundary, August 1, 1941; Madison, August 1, 1941.

Illinois: DeWitt, August 1, 1941; Putnam, August 1, 1941; Saline, August 1, 1944; Union, August 1, 1944.

Indiana: Howard, August 1, 1941;

Kansas: Finney, August 1, 1941.

Kentucky: Christian, August 1, 1941; Lewis, August 1, 1941; Simpson, August 1, 1941.

Massachusetts: Barnstable, August 1, 1941.

Michigan: Keweenaw, August 1, 1941.

Minnesota: Redwood, August 1, 1941.

Missouri: Jackson, August 1, 1941; Marion, August 1, 1941.

Montana: Treasure, August 1, 1941.

Nebraska: Dixon, August 1, 1941; Dodge, August 1, 1941.

Nevada: Churchill, August 1, 1941; Pershing, August 1, 1941.

New Jersey: Burlington, August 1, 1940; Passaic, August 1, 1940.

New Mexico: Dona Ana, August 1, 1941; Lincoln, August 1, 1941; Sierra, August 1, 1941.

North Carolina: Brunswick, August 1, 1941; New Hanover, August 1, 1941; Onslow, August 1, 1941; Pender, August 1, 1941.

North Dakota: Barnes, August 1, 1944; Griggs, August 1, 1944; Wells, August 1, 1944.

Ohio: Adams, August 1, 1941; Ashtabula, August 1, 1941; Stark, August 1, 1941.

Oklahoma: Jackson, August 1, 1941; Tillman, August 1, 1941.

Pennsylvania: Clarion, August 1, 1941; Juniata, August 1, 1941; Monroe, August 1, 1941.

Tennessee: Chester, August 1, 1941; Houston, August 1, 1941.

Texas: Armstrong, August 1, 1941; Bell, August 1, 1941; Cass, August 1, 1941; Childress, August 1, 1941; Delta, August 1, 1941; Ellis, August 1, 1941; Fort Bend, August 1, 1941; Gonzales, August 1, 1941; Jim Wells, August 1, 1941; Potter, August 1, 1941; San Patricio, August 1, 1941; Shackelford, August 1, 1941.

Vermont: Washington, August 1, 1941.

West Virginia: Barbour, August 1, 1941.

Wisconsin: Marathon, August 1, 1944; Pierce, August 1, 1944; Rock, August 1, 1941.

Wyoming: Crook, August 1, 1941; Fremont, August 1, 1941; Park, August 1, 1941; Washakie, August 1, 1941.

Declaration No. 12, dated October 1, 1936,[3] as amended, is hereby further amended accordingly.

[SEAL] A. W. MILLER,
Acting Chief of Bureau.

[F. R. Doc. 38-2364; Filed, August 12, 1938; 3:39 p. m.]

[1] Supplements footnote to 9 CFR 3.303.
[2] 1 F. R. 1388.
[3] 1 F. R. 2024.

TITLE 16—COMPETITIVE PRACTICES

FEDERAL TRADE COMMISSION

[Docket No. 3111]

IN THE MATTER OF DERAN CONFECTIONERY COMPANY

SEC 3.99 (b) *Using or selling lottery devices — In merchandising.* — Selling, etc., to dealers candies so packed, etc., that sales thereof to general public are to be, or are designed to be, made through a lottery, etc., as specified, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Modified cease and desist order, Deran Confectionery Company, Docket 3111, August 3, 1938.]

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Supplying, etc., to dealers assortments of candy to be, or designed to be, used, without alteration, etc., to conduct lottery, etc., in sale of such candy to public, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Modified cease and desist order, Deran Confectionery Company, Docket 3111, August 3, 1938.]

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Packing, etc., for sale to public at retail, assortments of uniform, individually wrapped pieces of candy, with boxes of candy or other merchandise as prizes for purchasers procuring pieces with certain colored centers, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Modified cease and desist order, Deran Confectionery Company, Docket 3111, August 3, 1938.]

SEC. 3.6 (c) *Advertising falsely or misleadingly Composition.* — Representing candies as composed of malted milk, when not in substantial part made therefrom, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Modified cease and desist order, Deran Confectionery Company, Docket 3111, August 3, 1938.]

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 3rd day of August, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

MODIFIED ORDER TO CEASE AND DESIST

This proceeding having been heard by the Federal Trade Commission upon the motion of Mark Wainer, counsel for the respondent, to vacate and to modify the order to cease and desist as issued in this proceeding on June 3, 1938,[1] and the Commission having considered the said motion and the record herein and being now fully advised in the premises:

It is ordered, That the motion to modify and amend the order to cease and desist issued herein on June 3, 1938, be, and the same hereby is, granted; and

It is further ordered, That the order to cease and desist issued herein on June 3, 1938, be, and the same hereby is, modified so as to read as follows:

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission and the answer of the respondent, testimony and other evidence in support of the allegations of the complaint and in opposition thereto, briefs filed herein and oral arguments by Henry C. Lank, counsel for the Commission, and by Mark Wainer, counsel for the respondent, and the Commission having made its findings as to the facts and its conclusion that said respondent has violated the provisions of the Federal Trade Commission Act;

It is ordered That the respondent, Deran Confectionery Company, a corporation, its officers, representatives, agents and employees, in connection with the offering for sale, sale and distribution of candy in interstate commerce or in the District of Columbia, do forthwith cease and desist from:

(1) Selling and distributing to dealers, candies so packed and assembled that sales of such candy to the general public are to be made, or are designed to be made, by means of a lottery, gaming device or gift enterprise.

(2) Supplying to or placing in the hands of dealers assortments of candy which are used, or which are designed to be used, without alteration or rearrangement of the contents of such packages or assortments to conduct a lottery, gaming device or gift enterprise in the sale and distribution of candy contained in said assortments to the public.

(3) Packing or assembling in the same package or assortment of candy for sale to the public at retail individually wrapped pieces of candy of uniform size and shape with different colored centers, together with packages or boxes of candy or any other merchandise, which said packages or boxes of candy or other merchandise are to be given as prizes to the purchasers procuring pieces of candy with centers of a particular color.

(4) Representing in any manner that certain of its products are composed of malted milk, when in fact, such products are not in substantial part manufactured from, or made of, malted milk.

It is further ordered, That the respondent shall, within sixty (60) days after service upon it of this order, file with the Commission a report in writing setting forth in detail the manner and form in which it has complied with this order.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 38-2363; Filed, August 12, 1938; 3:04 p. m.]

[1] 3 F. R. 1391 DI.

[Docket No. 2705]

IN THE MATTER OF STARTUP CANDY COMPANY

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Selling, etc., to jobbers, etc., or to retail dealers direct, candy so packed, etc., that sales thereof to the general public are to be, or may be, made by means of a lottery, etc., as specified, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b. [Cease and desist order, Startup Candy Company, Docket 2705, August 4, 1938.]

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.* — Supplying, etc., to wholesalers, etc., assortments of candy which are to be, or may be used, without alteration, etc., to conduct a lottery, etc., in the sale thereof to the public, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Startup Candy Company, Docket 2705, August 4, 1938.]

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.* — Packing, etc., for sale to public at retail, assortments of uniform pieces of candy with larger pieces or small packages of candy as prizes for purchasers procuring uniform pieces with certain colored centers, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV., sec. 45b.) [Cease and desist order, Startup Candy Company, Docket 2705, August 4, 1938.]

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Supplying, etc., to wholesalers, etc., assortments of candy with "push cards" for use or which may be used in distributing, etc. said candy to public, prohibted. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Startup Candy Company, Docket 2705, August 4, 1938.]

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Furnishing to retail dealers, etc. "push cards", with candy assortments or separately, informing public candy is being sold to public by lot or chance, etc., as specified, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Startup Candy Company, Docket 2705, August 4, 1938.]

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 4th day of August, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

ORDER TO CEASE AND DESIST

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission, the answer of respondent, testimony and other evidence taken before Charles P. Vicini and Henry M. White, examiners of the Commission theretofore duly designated by it, in support of the allegations of

said complaint and in opposition thereto, and briefs filed herein; and the Commission having made its findings as to the facts and its conclusion that said respondent has violated the provisions of the Federal Trade Commission Act;

It is ordered, That the respondent, Startup Candy Company a corporation, its officers, directors, agents, representatives and employees, in the offering for sale, sale and distribution in interstate commerce of candy, do cease and desist from:

(1) Selling and distributing to jobbers and wholesale dealers for resale to retail dealers or to retail dealers direct, candy so packed and assembled that sales of such candy to the general public are to be made or may be made by means of a lottery, gaming device or gift enterprise.

(2) Supplying to or placing in the hands of wholesale dealers and jobbers or retail dealers, assortments of candy which are used or which may be used without alteration or rearrangement of the contents of such assortments to conduct a lottery, gaming device or gift enterprise in the sale and distribution of the candy contained in said assortments to the public.

(3) Packing or assembling in the same assortment of candy for sale to the public at retail, pieces of candy of uniform size and shape having centers of a different color, together with larger pieces of candy or small packages of candy, which larger pieces of candy or small packages of candy are to be given as prizes to the purchasers procuring pieces of candy with a center of a particular color.

(4) Supplying to, or placing in the hands of wholesale dealers and jobbers, or retail dealers assortments of candy, together with a device commonly called a "push card" for use or which may be used in distributing or selling said candy to the public at retail.

(5) Furnishing to retail and wholesale dealers and jobbers a device commonly called a "push card", either with assortments of candy or separately bearing a legend or legends, or statements informing the purchasing public that the candy is being sold to the public by lot or chance, or in accordance with a sales plan which constitutes a lottery, gaming device or gift enterprise.

It is further ordered, That the respondent, Startup Candy Company, a corporation, shall, within 60 days after the service upon it of this order, file with the Commission a report in writing, setting forth in detail the manner and form in which it has complied with the order to cease and desist hereinabove set forth.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 38-2384; Filed, August 15, 1938; 11:50 a. m.]

[Docket No. 2708]

IN THE MATTER OF SHUPE-WILLIAMS CANDY COMPANY

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Selling, etc., to wholesalers, etc., or to retail dealers direct, candy so packed, etc., that sales thereof to the general public are to be, or may be, made by means of a lottery, etc., as specified, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Shupe-Williams Candy Company, Docket 2708, August 4, 1938.]

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Supplying, etc., to retailers, wholesalers, etc., assortments of candy which are to be, or may be used, without alteration, etc., to conduct a lottery, etc., in the sale thereof to the public, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Shupe-Williams Candy Company, Docket 2708, August 4, 1938.]

SEC. 3.99 (b) *Using or selling lottery devices — In merchandising.* — Packing, etc., for sale to public at retail, assortments of uniform pieces of candy with larger pieces and a small package of candy as prizes for purchasers procuring uniform pieces with certain colored centers, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Shupe-Williams Candy Company, Docket 2708, August 4, 1938.]

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Supplying, etc., to retailers, wholesalers, etc., assortments of candy with "push cards" for use or which may be used in distributing, etc., said candy to public, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Shupe-Williams Candy Company, Docket 2708, August 4, 1938.]

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Furnishing to retail dealers, etc. "push cards", with candy assortments or separately, informing public candy is being sold to public by lot or chance, etc., as specified, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b.) [Cease and desist order, Shupe-Williams Candy Company, Docket 2708, August 4, 1938.]

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 4th day of August, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

ORDER TO CEASE AND DESIST

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission, the answer of respondent, testimony and other evidence taken before Charles P. Vicini and Henry M. White, examiners of the Commission theretofore duly designated by it, in support of the allegations of said complaint and in opposition thereto, and briefs filed herein, and the Commission having made its findings as to the facts and its conclusion that said respondent has violated the provisions of the Federal Trade Commission Act;

It is ordered, That the respondent, Shupe-Williams Candy Company, a corporation, its officers, agents, representatives, and employees, in the offering for sale, sale and distribution in interstate commerce of candy, do cease and desist from:

(1) Selling and distributing to wholesale dealers and jobbers, for resale to retail dealers and to retail dealers direct, candy so packed and assembled that sales of said candy to the general public are to be made, or may be made, by means of a lottery, gaming device, or gift enterprise.

(2) Supplying to or placing in the hands of retail and wholesale dealers and jobbers assortments of candy which are used, or may be used, without alteration or rearrangement of the contents of such assortments, to conduct a lottery, gaming device, or gift enterprise in the sale or distribution of the candy contained in said assortments to the public.

(3) Packing or assembling in the same assortment of candy for sale to the public at retail pieces of candy of uniform size and shape having centers of a different color, together with larger pieces of candy and a small package of candy, which said larger pieces of candy and small package of candy are to be given as prizes to the purchaser procuring a piece of candy with a center of a particular color.

(4) Supplying to or placing in the hands of retail and wholesale dealers and jobbers assortments of candy, together with a device commonly called a "pushcard", for use, or which may be used, in distributing or selling said candy to the public at retail.

(5) Furnishing to retail and wholesale dealers and jobbers a device commonly called a "pushcard", either with assortments of candy or separately, bearing a legend or legends or statements informing the purchasing public that the candy is being sold to the public by lot or chance, or in accordance with a sales plan which constitutes a lottery, gaming device, or gift enterprise.

It is further ordered, That the respondent, Shupe-Williams Candy Company, a corporation, shall, within sixty days after service upon it of this order, file with the Commission a report in writing setting forth in detail the manner and form in which it has complied with the order to cease and desist hereinabove set forth.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 38-2385; Filed, August 15, 1938; 11:50 a. m.]

[Docket No. 2837]

IN THE MATTER OF OSTLER CANDY COMPANY

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Selling, etc., to jobbers, etc., or to retail dealers direct, candy so packed, etc., that sales thereof to the general public are to be, or may be, made by means of a lottery, etc., as specified, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b) [Cease and desist order, Ostler Candy Company, Docket 2837, August 4, 1938].

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Supplying, etc., to wholesalers, etc., packages, etc., of candy which are to be, or may be used, without alteration, etc., to conduct a lottery, etc., in the sale thereof to the public, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b) [Cease and desist order, Ostler Candy Company, Docket 2837, August 4, 1938].

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Packing, etc., bars of candy for sale to public at retail, with "push cards" for use or which may be or are designed to be used in distributing, etc., said candy to public, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b) [Cease and desist order, Ostler Candy Company, Docket 2837, August 4, 1938].

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Packing, etc., for sale to public at retail, packages, etc., of uniform pieces of candy, with larger pieces or other articles of merchandise as prizes for purchasers procuring uniform pieces with certain color or center, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b) [Cease and desist order, Ostler Candy Company, Docket 2837, August 4, 1938].

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Furnishing to retail dealers, etc., "push cards", with candy or separately, informing public candy is being sold to public by lot or chance, etc., as specified, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b) [Cease and desist order, Ostler Candy Company, Docket 2837, August 4, 1938].

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 4th day of August, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

ORDER TO CEASE AND DESIST

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission, the answer of respondent, testimony and other evidence taken before Charles P. Vicini and Henry M. White, examiners of the Commission, theretofore duly designated by it, in support of the allegations of said complaint and in opposition thereto, and briefs filed herein; and the Commission having made its findings as to the facts and its conclusion that said respondent has violated the provisions of the Federal Trade Commission Act;

It is now ordered, That the respondent, Ostler Candy Company, a corporation, its officers, agents, representatives and employees, in the offering for sale, sale and distribution in interstate commerce of candy, do cease and desist from:

(1) Selling and distributing to jobbers and wholesale dealers for resale to retail dealers, or to retail dealers direct, candy so packed and assembled that sales of such candy to the general public are to be made, or may be made by means of a lottery, gaming device, or gift enterprise.

(2) Supplying to or placing in the hands of wholesale dealers and jobbers or retail dealers packages or assortments of candy which are used, or which may be used, without alteration or rearrangement of the contents of such packages or assortments, to conduct a lottery, gaming device, or gift enterprise in the sale or distribution of the candy contained in said packages or assortments to the public.

(3) Packing or assembling in the same package or assortment of candy for sale to the public at retail bars of candy, together with a device commonly called a "pushcard", which pushcard is for use, or which may be or is designed to be used, in distributing or selling said candy to the public at retail.

(4) Packing or assembling in the same package or assortment of candy for sale to the public at retail pieces of candy of uniform size and shape of different colors or having centers of a different color, together with larger pieces of candy or other articles of merchandise, which said larger pieces of candy or other articles of merchandise are to be given as prices to the purchaser procuring a piece of candy of a particular color or having a center of a particular color.

(5) Furnishing to retail and wholesale dealers and jobbers a device commonly called a "pushcard", either with packages or assortments of candy or separately, bearing a legend or legends or statements informing the purchasing public that the candy is being sold to the public by lot or chance, or in accordance with a sales plan which constitutes a lottery, gaming device, or gift enterprise.

It is further ordered, That respondent, Ostler Candy Company, a corporation, within thirty days after service upon it of this order, shall file with the Commission a report in writing setting forth in detail the manner and form in which it has complied with the order to cease and desist hereinabove set forth.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 38-2386; Filed, August 15, 1938; 11:50 a. m.]

[Docket No. 2848]

IN THE MATTER OF GLADE CANDY COMPANY

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Selling, etc., to wholesalers, etc., for resale to retail dealers direct, candy so packed, etc., that sales thereof to the general public are to be, or may be, made by means of a lottery, etc., as specified, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b) [Cease and desist order, Glade Candy Company, Docket 2848, August 4, 1938].

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Supplying, etc., to retailers, wholesalers, etc., packages, etc. of candy which are to be, or may be, used, without alteration, etc., to conduct a lottery, etc., in the sale, etc., thereof to public, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b) [Cease and desist order, Glade Candy Company, Docket 2848, August 4, 1938].

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Supplying, etc., to retailers, wholesalers, etc., assortments of candy, with "pushcards" or "punchboards" for use or which may be used in distributing, etc., said candy to public at retail, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b) [Cease and desist order, Glade Candy Company, Docket 2848, August 4, 1938].

SEC. 3.99 (b) *Using or selling lottery devices—In merchandising.*—Furnishing to retail dealers, etc. "pushcards" or "punchboards", with candy or separately, informing purchasing public candy is being sold to public by lot or chance, etc., as specified, prohibited. (Sec. 5b, 52 Stat. 112; 15 U. S. C., Supp. IV, sec. 45b) [Cease and desist order, Glade Candy Company, Docket 2848, August 4, 1938].

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 4th day of August, A. D. 1938.

Commissioners: Garland S. Ferguson, Chairman; Charles H. March, Ewin L. Davis, William A. Ayres, Robert E. Freer.

ORDER TO CEASE AND DESIST

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission, the answer of respondent, testimony and other evidence taken before Charles P. Vicini and Henry M. White, examiners of the Commission theretofore duly designated by it, in support of the allegations of said complaint and in opposition thereto, and briefs filed herein; and the Commission having made its findings as to the facts and its conclusion that said respondent has violated the provisions of the Federal Trade Commission Act;

It is ordered, That the respondent, Glade Candy Company, a corporation, its officers, directors, agents, representatives and employees, in the offering for sale, sale and distribution in interstate commerce of candy, do cease and desist from:

(1) Selling and distributing to wholesale dealers and jobbers, for resale to retail dealers direct, candy so packed and assembled that sales of said candy to the general public are to be made, or may be made, by means of a lottery, gaming device, or gift enterprise.

(2) Supplying to or placing in the hands of retail and wholesale dealers and jobbers packages or assortments of candy which are used, or may be used, without alteration or rearrangement of the contents of such packages or assortments, to conduct a lottery, gaming device, or gift enterprise in the sale or distribution of the candy contained in said assortments to the public.

(3) Supplying to or placing in the hands of retail and wholesale dealers and jobbers assortments of candy, together with a device commonly called a "push-card", or a device commonly called a "punchboard", for use, or which may be used, in distributing or selling said candy to the public at retail.

(4) Furnishing to retail and wholesale dealers and jobbers a device commonly called a "pushcard" or a device commonly called a "punchboard," either with packages or assortments of candy or separately, bearing a legend or legends or statements informing the purchasing public that the candy is being sold to the public by lot or chance, or in accordance with a sales plan which constitutes a lottery, gaming device, or gift enterprise.

It is further ordered, That the respondent, Glade Candy Company, a corporation, shall, within sixty days after service upon it of this order, file with the Commission a report in writing setting forth in detail the manner and form in which it has complied with the order to cease and desist hereinabove set forth.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 38-2387; Filed, August 15, 1938; 11:51 a. m.]

TITLE 25—INDIANS

OFFICE OF INDIAN AFFAIRS

ORDER DEFINING JOINT, DISTRICT AND INDIAN WORKS OF THE SAN CARLOS FEDERAL IRRIGATION PROJECT

TURNING OVER OPERATION AND MAINTENANCE OF DISTRICT WORKS TO THE SAN CARLOS IRRIGATION AND DRAINAGE DISTRICT

The Repayment Contract of June 8, 1931, between the United States of America and the San Carlos Irrigation and Drainage District, made pursuant to the San Carlos Act (Act of June 7, 1924, 43 Stat., 475-476) provided that the Secretary of the Interior of the United States could in his discretion permit the District to operate and maintain certain of the works of the San Carlos Federal Irrigation Project designated in the said Repayment Contract as "Works of the District."

The District has for several years been operating the works serving District lands exclusively. The District is desirous of maintaining said works as well as operating them and has formally requested the said Secretary to give his consent to its so doing, which said request was embodied in a Resolution of its duly qualified Board of Directors adopted May 3, 1938.

Responsive to that request and in order to have the operation and maintenance of the works serving District lands carried out by the same organization, and to ascertain the advantages, if any, of having the District operate and maintain the works serving District lands, the consent of the Secretary of the Interior of the United States is hereby given to the operation and maintenance of said District works on the conditions hereinafter set forth.

The Secretary retains the right to withdraw the consent hereby given at any time when in his judgment it would be for the best interests of the Government or the Project as a whole.

In accordance with law, and the Repayment Contract and on the foregoing premises, and in order to make effective the aforesaid purposes,

It is hereby ordered that:

Joint Works

The Joint Works of the San Carlos Federal Irrigation Project are hereby defined and declared to be as follows:

1. Coolidge Dam and San Carlos Reservoir.
2. Electrical power generating, transmission and distribution system.
3. Ashurst-Hayden Diversion Dam.
4. Florence-Casa Grande Canal to and including turnout to the Picacho Reservoir.
5. Picacho Reservoir, Feeder Canal and Outlet Structure, Provided however, that at any time in the future when the Picacho Reservoir is not or can not be used for Project storage or regulatory purposes, it and the outlet structure and feeder canal upon further order of the Secretary may be designated as part of the District Works.
6. North Side Canal from the Florence-Casa Grande Canal to the boundary of the Pima Indian Reservation.
7. Pima Lateral to the boundary of the Pima Indian Reservation.
8. Sub-laterals of the Pima Lateral outside of the Reservation which serve in whole or in part Indian lands.
9. Drainage and irrigation pumping works including wells and structures regardless of whether located within the District or the Reservation.
10. All structures on any and all of the above works, together with measuring devices such as measuring flumes or gauging stations used for the division of water as between Indian lands and District lands, even though some of such structures may be located in laterals and canals themselves designated as District or Indian Works.
11. Telephone lines and appurtenances belonging thereto.
12. All Project buildings paid for on joint account including the office building at Coolidge, the Project garage and shops, including the shops at Olberg, and all machines and other equipment necessary for the operation and maintenance of the Joint Works heretofore selected for that purpose by the Project engineer and the officials of the San Carlos Irrigation and Drainage District. Provided, however, that in the event the Project Joint Works organization does not need all the office and warehouse space to carry on the activities of the Project Joint Works, the District and the Indian Unit, or either, shall have the right to use such space for official purposes on the following conditions, to-wit:

A. The Project engineer shall have the right to determine the amount if any of such available space.

B. The Project engineer has determined that for the present Joint Works will need approximately one-third of the available office space at Coolidge. The District shall therefore be permitted to use one-third of said office space, and the Indian Unit one-third until such time as the Project engineer finds that the requirements of Joint Works for such office space increase or decrease. The occupancy of the building shall be by mutual agreement of the Project engineer, the District engineer and the person in charge of the Indian Unit, should that Unit at any time be under the supervision of anyone other than the Project engineer. It has been agreed that until the requirements of Joint Works increase the District shall occupy the approximate east one-third of the office building. That arrangement is hereby confirmed, subject to the right of the Project engineer to determine the manner in which the building shall be divided so as to best effect the arrangement agreed upon, and the further condition that the right of Joint Works to the use of said building shall at all times be paramount, and the judgment of the Project engineer as to the requirements of Joint Works shall be final until otherwise determined by the Secretary. The basement space in the building shall be divided among the aforesaid units in approximately the same ratio as the office space and subject to the same terms and conditions set forth herein. There shall be no charge made to the District or Indian Units for the space thus occupied. The cost of operating and maintaining the building shall be carried by Joint Works. The warehouse and garage and other facilities at Coolidge have been and are in general necessary for Joint Works, but in the event the Project engineer

finds it feasible to assign some of said space or facilities to the District or Indian Units without sacrificing the efficiency of Joint Works he may do so, provided, however, that neither the District nor the Indian Unit shall be entitled to preference or favoritism in that regard.

C. The District and the Indian Unit shall have the right at all times to the services of the Project shops for official work on the following conditions:

(1) The shops shall be maintained for the purpose principally of doing work for the Joint Works part of the Project.

(2) The shops shall be operated at all times under the supervision and management of the Project engineer who shall make such rules and regulations in regard to their operation as he may from time to time think necessary to promote efficiency and economy, including the time and method of payment for work done for the District or Indian Units.

(3) All shop work done for the District and the Indian Units shall be done by the Project shop organization on a cost basis, and shall be done only at such times as may not interfere with Joint Works requirements. All such work shall be done as between the Indian Unit and the District on the basis of "First come, first served," except that the Project engineer may do emergency work for either at any time, when in his judgment it is necessary.

13. All lands upon which any of the foregoing buildings or structures are located and the rights of way therefor, including the right of way for the San Carlos and Picacho Reservoir sites.

A. If at any time it shall be found that the Project Joint Works does not require the use of some of said land, and any of it can be used advantageously by the District or the Indian Unit, the Project engineer may assign such area to either of said Units for use without cost to be used by the Unit to which assigned until needed by the Project. The availability of such land for assignment as aforesaid, and the purposes for which it may be used by the party to which it may be assigned, and the manner in which it shall be used and cared for shall be determined by the Project engineer, whose judgment shall be final in case of disagreement in such matters.

B. In the event the Project engineer determines it is necessary for Joint Works to have and use any or all of the Project buildings or premises in this Order, or hereafter, assigned to the District, he shall give the District six (6) months notice in advance of the date when the District shall vacate any such buildings or premises occupied or used by it.

District Works

All Project Works not hereinabove reserved as Joint Works and which are used for the serving of District lands are hereby defined and declared to be District Works.

The District Works as herein defined are hereby turned over to the District beginning July first, 1938, to be operated and maintained by the District and at its expense under management satisfactory to the Secretary of the Interior of the United States, until further order.

The operation and maintenance of the District Works by the District as provided for herein shall be at all times done both as to quality and quantity in a manner satisfactory to the said Secretary. The District shall at all times keep the works hereby entrusted to its care for operation and maintenance in a satisfactory operating condition; it being understood in that regard that if at any time either the management or the operation and maintenance of the District Works by the District shall prove unsatisfactory to the United States the Secretary of the Interior or his duly authorized representative, the Project Engineer, shall, in writing, call such matters to the attention of the District; and in the event such unsatisfactory matters are not corrected by the District within a reasonable time, the Secretary retains the right to withdraw from the District the privilege of operating and maintaining said works. What constitutes "a reasonable time" within the meaning of this paragraph shall be determined and definitely set forth in any letter or notice calling any such unsatisfactory conditions to the attention of the District. Provided, however, that in the event any such notice shall be given by the duly authorized representative of the Secretary, his fixing of a reasonable time for remedying the unsatisfactory conditions called to the attention of the District in any such notice may be appealed to the Secretary whose decision in that regard shall be final.

Indian Works

All Project works serving Indian lands not reserved herein as Joint Works as above defined shall be considered and are hereby declared to be Indian Works.

All Indian Works as herein defined shall be operated and maintained by the United States and at its or the Indians' expense.

Operation and Maintenance Charges

Joint Works

The Joint Works as herein defined will be operated and maintained by the United States and the cost thereof, including the administration of the Gila decree, (such costs for the fiscal year beginning July 1, 1938, are estimated to be $60,000) exclusive of the cost of operating and maintaining electric power generating plants at the Coolidge Dam and the Diesel plant at Coolidge and the power transmission and distribution system, as well as all the appurtenances belonging to the Project electrical system, which is payable from power revenues, and for the payment of which such revenues are now expected to be sufficient, shall be paid by the Project landowners as provided for in the Landowners' Agreement and the Repayment Contract.

Since the Project consists of 50,000 acres of Indian lands and 50,000 acres of public and private lands, said cost of maintaining and operating the Joint Works shall be paid equally on account of the Indian lands and the public and private lands at a per acre rate to be established by order of the Secretary annually hereafter, which said rate shall produce such a sum of money as shall be determined by the Secretary to be the amount necessary to meet, on the aforesaid basis, the proportionate share of the expense required by the Project to maintain and operate the Joint Works.

That part of the charges for operation and maintenance of the Joint Works to be borne by the District when so determined shall be paid on a fiscal year basis to the United States annually in advance, not later than the first day of March of each year, beginning the first of March, 1939, all as provided in the Repayment Contract as amended, which said first payment shall be for the fiscal year 1940, and the United States or the Indians will make available the same amount of money each fiscal year for the operation and maintenance of the Joint Works for and on account of the Indian lands.

Since the District has made payments to the Project covering its share of the cost of Joint Works for the calendar year 1938, and its estimated share of the cost of the Project maintenance to July 1, 1938, also the money collected by it for excess water deliveries during the year 1937; and since in any event there will be unadjusted credits due the District or payments due from it to the Project on account of its share of said costs and its share of Joint Works maintenance and operation costs for the last half of the fiscal year 1939, it is hereby provided that any unadjusted credits or payments on account of said items existing on July 1, 1938, shall be adjusted at the first opportunity after the actual figures are determined by the Project engineer, in any event within thirty (30) days after the Project engineer furnishes the District with a statement of its account with the Project as of July 1, 1938, for and on account of the aforesaid items. The Project engineer in determining what amount if any the District owes the Project on July 1st on account of said items shall allow the District credit for fifty per centum (50%) of the total Project revenues derived from excess water deliveries for the calendar year 1937, to the extent such revenues have been collected and are available for Project uses, but no credit can be allowed the District on account of such revenues due for deliveries to Indian lands during 1937 until made available by Congress; credit for such un-

collected amounts shall be allowed on future payments by the District.

Delivery of Water and Operation and Maintenance Charges for District Lands and Works

The District, in accordance with the Repayment Contract, shall make an annual charge against lands of the District, herein designated as the basic charge, for operation and maintenance of District Works and for the District's share of operation and maintenance of Joint Works which charge when collected will, together with its proper share of revenue from the anticpated excess water charges hereinafter provided for, cover the cost of operating and maintaining said District Works and pay the District's share of operating and maintaining the Joint Works.

The District, in accordance with the Repayment Contract, shall deliver two (2) acre feet of water or such part thereof as may be legally and physically available, to each irrigated acre in the District on payment of its said basic charge and any other charges due the District or the United States under the provisions of the Landowners' Agreement and the Repayment Contract, Provided that all sums due the United States provided for herein shall have been paid by the District in accordance with the provisions of this order and the terms of the Repayment Contract; all additional water, except free water, as provided for in the Repayment Contract shall be paid for by the landowners and collected by the District, at the rate of Fifty Cents (50¢) per acre foot for the third acre foot per acre and at the rate of One Dollar ($1.00) per acre foot for all additional water delivered, but the Secretary retains the right to change at any time the charge for excess water.

In order to protect the interests of the United States and facilitate the collection of the construction charges due from the landowners within the District owing to the United States, it is further provided that the District shall maintain an organization which will not entail an overhead expense disproportionate to the services which it renders the landowners in the operation and maintenance of said District Works.

It is further provided that if at any time the Secretary determines that the charges made by the District for operation and maintenance of the District Works are excessive, the District shall proceed immediately upon written notice from the Secretary of the Interior to reduce said cost, to a maximum to be fixed in such notice by the Secretary of the Interior and if within a reasonable time the District finds itself unable to meet the demands of the Secretary in that regard the Secretary may withdraw the operation and maintenance of the District Works from the District. The Secretary retains full power to determine what constitutes a reasonable time within the meaning of this paragraph.

Delivery of Water and Operation and Maintenance Charges for and on Account of the Indian Lands and Works

As hereinbefore provided, the United States will make available for operating and maintaining the Joint Works the aforesaid share thereof due on account of the 50,000 acres of Indian lands in said Project. In addition thereto the United States or the Indians shall provide an amount of money which will be sufficient to meet the per acre cost of maintaining and operating the Indian Works, which said per acre cost shall be termed the basic charge for Indian lands and shall be paid or provided for at the time and in the manner provided from time to time by the Secretary of the Interior in accordance with law and the Repayment Contract. It is further provided that when the basic charge for Indian lands plus the Indians' per acre share of the cost of Joint Works has been determined and the payment thereof made by the Indians in advance or provided for by the United States then there shall be delivered to each irrigated acre of Indian land two acre feet of water or such part thereof as may be legally and physically available annually; and all additional water, except free water as provided for in the Repayment Contract, delivered to Indian lands shall be upon such terms as may be prescribed by the Secretary from time to time as provided for in Article 11 of the Repayment Contract, but until further order in that regard it shall be paid for in advance by the Indians or provided for by the United States in advance of delivery at the rate of Fifty Cents (50¢) per acre foot for the third acre foot per acre and at the rate of One Dollar ($1.00) per acre foot for all additional water delivered.

Application of Funds From Excess Water Deliveries and Sales to Towns, Villages, Municipalities, State Institutions, Indian Agency Grounds and Gardens and the Agricultural Experiment Station at Sacaton

The revenue from charges for excess water deliveries shall be used and paid as provided in the Repayment Contract, and its provisions shall be considered as having been complied with as long as the District operates and maintains District Works, if the said collections shall be made and applied as follows:

Both the District and the Indian Unit or the United States for the Indians shall be entitled to use fifty per centum (50%) of the total of such charges due or collected hereafter from both Indian and District lands in any one year to meet, to the extent it will, their respective basic sum charges. Where deliveries to District lands exceed those to Indian lands or vice versa, any balance due to or owing from either by reason of such differences shall be adjusted at the end of each calendar year by proper payments from the District or credits to it. Such payments or credits to be made on or before March 1st of the succeeding year as provided in the Repayment Contract.

In harmony with the Act of March 7, 1928 (45 Stat. 200 at 210), and Article 12 of the Repayment Contract, it has been the practice since the San Carlos Project has been in operation to furnish water when available to the State Prison near Florence, and to the cities and towns in the Project as well as to the Agency grounds and gardens and the Experimental Farm at Sacaton, and it is believed that so long as that can be done it will be to the best interests of the Project to continue such uses of water. It is contemplated that contracts and such proper orders as may be required will be made in the near future to carry that policy into effect on a well-defined and permanent basis. When that shall have been done all such services as may be required from the District or the Indian Unit to deliver water to said agencies shall be paid for as shall from time to time be provided by the Secretary of the Interior.

All money received from the sale or leasing of water to any or all of the aforesaid public institutions for public enterprises, and beautification, where such service shall be rendered by the District or the Indian Unit, shall after due compensation as aforesaid for such service, be used and paid in the same manner provided herein with reference to money received from excess water deliveries. In the event, however, that the Project Joint Works can and does render the service to any or all of said public institutions without using District or Indian Unit Works, it shall make the collections and the revenue shall go into the Joint Works operation and maintenance fund and be used to reduce the amount due for that purpose from the District and the Indian Unit each year.

Florence-Casa Grande Project Lands

There are certain lands of the Florence-Casa Grande Project which have water rights, but have not been merged as yet with the San Carlos Project. It is necessary that said lands be served in part through Project canals the amount of water to which, under the law and the Florence-Casa Grande Agreement, they are entitled. It is contemplated that contracts and proper orders shall be made with the Florence-Casa Grande landowners, which shall provide among other things for payment by them of construction costs and operation and maintenance charges of the Florence-Casa Grande Project. The operation and maintenance charges collected from said lands shall be paid into the San Carlos Project operation and maintenance fund and be used to reduce the assessments for Joint Works against Indian and District lands each year. The District shall be allowed due compensation however for any service which it may be required to and renders said lands or to the State lands or cities and towns. The extent of service and com-

pensation shall be agreed upon hereafter, but in the event an agreement can not be reached in that regard mutually satisfactory to the Project engineer, the District and the Indian Unit, the Secretary retains the right to determine such matters.

It is further provided that until such permanent arrangements have been consummated for the State lands, the cities, towns and villages, the Florence-Casa Grande lands and the non-project Federal Agency lands at Sacaton, that the District will continue as in the past to deliver to the Florence-Casa Grande Project lands, such water as they are entitled to in accordance with law and the Florence-Casa Grande Agreement and shall collect from said landowners such operation and maintenance charges as shall be determined upon and fixed by the Secretary of the Interior from year to year, and it will also deliver to the State Prison lands and the cities and towns such water as may be allotted to them upon the same terms as has heretofore been done. The Indian Unit will make deliveries to the Federal Agencies for which it shall also be allowed compensation to be hereafter fixed on a per acre basis; Provided the Project shall be allowed a credit of One Dollar and Eighty Cents ($1.80) per acre for service it performs on account of said agencies for the year 1937. All net revenue from collections made on said temporary basis shall be paid to the San Carlos Project Joint Works.

United States and District to Keep and Exchange Records

The District and the Indian Unit or the United States for it will keep records of the amounts and rates of delivery of water to farm units of the District, and the amount and rate of delivery of water to the Indian lands, according to methods approved by the Secretary of the Interior. They will furnish to each other a summary of such amounts and rates of supply for their information. These records are to be kept open for inspection by the Indian Unit, the United States and the District. Such records of the deliveries to District lands served through Government operated canals will be furnished the District in detail for assessment purposes.

District Compliance With Gila Decree

It is further provided that the District in the operation and maintenance of said District Works and the delivery of water to the Project lands within the District and the delivery of water to Florence-Casa Grande Project lands shall use every legal means at its command to see that the terms of the Gila decree are not violated and to cooperate with the Project engineer and the Federal Court Water Commissioner in the enforcement of its terms and provisions.

Division of Project Equipment

Equipment belonging to the San Carlos Project shall be divided as between Joint Works, the District, and the Indian Unit of the Project, according to the needs of each unit. All equipment used or needed for the operation and maintenance of Joint Works shall first be selected from available Project equipment by the Project engineer and shall be designated as belonging to the Project for Joint Works. A division of the remaining equipment shall be made by the District and the Project engineer on such equitable basis as will most nearly equalize the benefits to both the District and Indian Units in the use of said equipment in the operation and maintenance of their respective units of the Project. In the event that an agreement cannot be reached as to this division the matter or disagreement shall be promptly referred to the Secretary of the Interior, together with a statement of the requirements of each as to such equipment, and his decision in the matter shall be final.

The value of such equipment as may be taken over by the District or the Indian Unit of the Project shall be paid for by the party receiving it. The payment therefor shall be made to the Project disbursing agent or other properly designated Project employee. The amount to be paid by each of said parties for the equipment turned over to them, respectively, shall be the current, approved value of said equipment as shown on the Project inventory and equipment accounts. Said equipment shall be paid for by the party receiving same at the time said property is turned over; Provided, however, that the District may use any unadjusted credit due it from the Project on January 1, 1938, in payment for any such equipment taken over by it, and the Indian Unit may pay for such equipment as it takes over on such terms as may be agreed to by the Project engineer, but in the event the said Indian Unit takes over any such equipment on terms other than by payment at the time of delivery, it shall in any event pay the full value thereof as of the date when so taken over, even though the equipment be worn out or destroyed before it shall have been paid for.

When, in the judgment of the Project engineer, emergencies exist, or at such other times as in his judgment economies may be effected in the operation and maintenance work on any part of the Project he may, at the request of the District or the Indian Unit, use Joint Works equipment together with its operating crews to do the emergency work or effect economies, if it can be done without sacrificing Joint Works activities. In the event Joint Works equipment shall have been used as aforesaid, Joint Works shall be fully compensated by the unit for which the work shall have been performed, on an actual per diem or shift basis, according to the procedure established by the Project in accounting for the cost chargeable to the particular piece or pieces of equipment so used at the time such work may be done as aforesaid for the District or Indian Unit.

Certain Features Contingent on Appropriations

It should be remembered that the provisions of this order, to the extent that funds are required to be made available by the United States beyond the fiscal year 1939, are dependent upon appropriations being made by Congress for such purposes. The United States, however, through its Secretary of the Interior, will use every legal effort at its command to see that the assessments which may become due for Joint and Indian Works as provided for herein are made available to the Project or other proper Indian Service official, to the end that the Project Joint Works and the Indian Works may be maintained and operated in the best possible manner so as to promote efficiency and economy in the use of water and conserve the Project water supply.

Supervisory Control Retained

This order is not intended to be and shall not be construed as an amendment or modification of either the Landowners' Agreement or the Repayment Contract, but as an administrative operating order made pursuant to the provisions of the Repayment Contract for the purpose of defining the conditions upon which certain of the objectives provided for in said Contract may be achieved. The Secretary reserves the right to exercise at any time any and all rights, powers and privileges given him by law and the aforesaid Contracts with reference to the San Carlos Federal Irrigation Project, whether specifically mentioned herein or not, including the right to supervise, through his duly authorized representatives, to the extent he may deem necessary, the doing of the maintenance and operation work herein conditionally delegated to the District. The Secretary also retains the right to modify this order and impose new or modified conditions on the District from time to time and to permit the Indian Unit to be operated in whole or in part by the Indians if deemed advisable; also to revoke in whole or in part, at any time, this or any amended or modified order.

Done at Washington, D. C. this 15th day of June, A. D. 1938.

OSCAR L. CHAPMAN,
Assistant Secretary of the Interior.

[F. R. Doc. 38-2367; Filed, August 13, 1938; 9:42 a. m.]

LETTER OF INSTRUCTIONS AUTHORIZING ASSESSMENTS ON LAND IN NON-INDIAN OWNERSHIP DESIGNATED UNDER THE FLATHEAD INDIAN IRRIGATION PROJECT, MONTANA, FOR REPAYMENT OF THE CONSTRUCTION COSTS OF THAT PROJECT

JULY 11, 1938.

MR. W. S. HANNA,
Supervising Engineer.

DEAR MR. HANNA: Receipt is acknowledged of your letter of June 21, relating

to the matter of assessments against the lands of the Flathead irrigation project for the repayment of construction costs.

Your attention is invited in this connection to the public notice fixing the construction charges for the Flathead irrigation project issued by the Assistant Secretary of the Interior on November 1, 1930. That public notice, as you are aware, sets out the construction costs chargeable to the lands of the different divisions of the project up to that date and also designates the rates of annual assessments against the lands of the various divisions.

The Act of Congress of July 1, 1932 (47 Stat., 564–65) known as the Leavitt Act released all Indian lands from assessments for construction costs so long as such lands remain in Indian ownership.

In accordance with the public notice the construction costs up to November 1, 1930, as designated therein against the lands of the Flathead irrigation project, not included in any irrigation district, were to be repaid within 20 years from that date. The public notice provides that there should be an initial installment of 5 per cent of such construction costs due and payable on December 1, 1930, after which there were to be no further payments until December 1, 1935. Beginning with December 1, 1935, there were to be annual installments paid on that date of each year over a period of 15 years, 5 per cent of the construction costs annually for the first five years and 7 per cent annually for the next ten years.

There has been no modification of this portion of the public notice, in so far as it applies to lands in non-Indian ownership, except the moratorium provisions contained in the Act of Congress of June 13, 1935 (49 Stat., 337) for the season of 1935 and the Act of April 14, 1936 (49 Stat., 1206) for the season of 1936. The provisions of the public notice covering the assessments for construction costs against lands in non-Indian ownership, not included in any irrigation district, have been and still are in effect.

The original public notice contemplated that the full amount of the construction costs, up to November 1, 1930 charged against lands which were then included in an irrigation district, or should subsequently be so included, were to be repaid at the rate of 2½ per cent annually. The arrangement as set out in the original public notice was for the first 2½ per cent assessment to be made for the season of 1931 with the privilege of making the payments semiannually on February 1 and August 1 of the year 1932 with similar assessments and semiannual payments of each year thereafter until the construction costs were paid in full.

The public notice was modified by the Act of Congress of February 14, 1931 (46 Stat., 1127) which contains the following provision:

* * * in any district in this project, which has or may hereafter execute a repayment contract in pursuance of existing law, the first payment of construction charges may in the discretion of the Secretary of the Interior be required in the calendar year 1935, but in any event the total repayment of such construction charges shall be required in not more than forty years from the date of public notice heretofore given: * * *

On March 28, 1931, the Office addressed a letter to you which was approved by the Department on April 20, 1931, wherein the provisions of the act above cited were discussed and the public notice of November 1, 1930, was amended in accordance therewith. It was explained in that letter that in pursuance of the provisions of the act mentioned above the assessments against lands included within the irrigation districts shall be due and payable in the calendar year 1935 instead of the date fixed in said public notice, provided the annual per acre rate fixed on page 2 of the public notice shall be increased so as to distribute the amount that otherwise would have accrued pursuant to said public notice up to November 1, 1935, over the remainder of the 40-year period, that increased rate to be determined by dividing the total area of each division into the cost fixed by the public notice for such division and dividing that sum by 35 which is the number of years over which the said amount is to be paid beginning with the year 1935.

The letter cited above also points out that all lands not falling within these classes shall be subject to the construction assessments as provided in the public notice.

The letter above cited further modifies the public notice by deleting several lines on page 5 thereof as follows:

proper additions being made thereto on account of individual assessments for operation and maintenance charges for the irrigation seasons of 1928 and 1930 to be covered into construction costs in accordance with the provisions of Acts of Congress approved March 7, 1928 (45 Stat., 213) and May 14, 1930 (46 Stat., 291), and

The Act of May 9, 1935 (49 Stat., 187) further defers the date on which payments should begin on construction costs against lands of the irrigation districts, and contains the following provision:

* * * *Provided*, That (with the consent of the irrigation districts of the Flathead irrigation project which have executed repayment contracts with the United States as required by law) the Secretary of the Interior may modify the terms of such contracts by requiring the operation and maintenance charges (not heretofore carried into construction costs and which were dealt with in the Act of March 7, 1928 (45 Stat., pp. 212–213)), and those accruing subsequent to March 7, 1928, which were due and unpaid at the time of execution of repayment contract, to be paid over the same period of years and in like manner as the construction costs are to be paid under the terms of the public notice issued by such Secretary on November 1, 1930, as amended April 20, 1931: *Provided*, That no interest rate shall be charged from and after the date of the passage of this Act: *Provided further*, That the first installment of such operation and maintenance charges shall be due and payable on the same date as the first installment of construction charges is due or may be due and payable, where modifications of the contracts are made pursuant hereto: *Provided further*, That the first installment of construction costs shall be due and payable in December 1938 instead of the date now fixed: *Provided further*, That the operation and maintenance cost assessable against the Jocko Valley irrigation district for the calendar year of 1935 shall be carried into the construction costs and shall be payable as other construction costs. * * *

Pursuant to the provisions of the law quoted above supplemental contracts have been entered into with each of the three Irrigation Districts on the Flathead irrigation project with a view to carrying out the provisions of the act for covering the unpaid operation and maintenance charges into the construction costs and deferring the collection of the construction costs until December 1938.

The supplemental contract with the Flathead Irrigation District bears date of August 21, 1936 and was approved by the Department on August 26 of that year. Section 8 of that supplemental contract modifies the public notice of November 1, 1930, as follows:

8. The United States will levy an assessment against the Flathead Irrigation District for the repayment to the United States of the costs of constructing the irrigation system serving the assessable land included in said District at the rate of $1.28 per acre per annum, beginning with the assessment of the year 1938 until thirty-five (35) such annual assessments shall have been made. Thereafter, the annual assessment for the repayment of such cost accruing subsequent to the issuance of the public notice shall be at the rate of $1.12 per acre against assessable land included in said District until the total expenditure by the United States for the construction of said irrigation system shall have been paid. The said annual assessments shall be paid in semi-annual installments, the first of which shall be due and payable on December 31st of the year for which the assessment is made and the second of which shall be due and payable on June 30th of the succeeding year. The District will annually levy against each assessable acre of land included therein and pay to the United States a sum equal to the assessment of the United States based on the above rates.

The supplemental contract with the Mission Irrigation District bears date of August 21, 1936 and was approved by the Department on August 26 of that year. Section 8 of that supplemental contract modifies the public notice of November 1, 1930, as follows:

8. The United States will levy an assessment against the Mission Irrigation District for the repayment to the United States of the cost of constructing the irrigation system serving the assessable land legally included in said District at the rate of $1.28 per acre per annum, beginning with the assessment of the year 1938 until thirty-five (35) such annual assessments shall have been made. Thereafter, the annual assessment for

the repayment of such cost accruing subsequent to the issuance of said public notice shall be at the rate of $1.12 per acre against assessable land included in said District until the total expenditure by the United States for the construction of said irrigation system shall have been paid. The said annual assessments shall be paid in semi-annual installments, the first of which shall be due and payable on December 31st of the year for which the assessment is made the second of which shall be due and payable on June 30th of the succeeding year. The District will annually levy against each assessable acre of land included therein and pay to the United States a sum equal to the assessment of the United States based on the above rates.

The supplemental contract with the Jocko Valley Irrigation District bears date of September 29, 1936 and was approved by the Department on October 5 of that year. Section 8 of that supplemental contract modifies the public notice of November 1, 1930, as follows:

8. The United States will levy an assessment against the Jocko Valley Irrigation District for the repayment to the United States of the cost of constructing the irrigation system serving the assessable land legally included in said District at the rate of $0.57 per acre per annum, beginning with the assessment of the year 1938 until thirty-five (35) such annual assessments shall have been made. Thereafter, the annual assessment for the repayment of such cost accruing subsequent to the issuance of said public notice shall be at the rate of $0.50 per acre against assessable land included in said District until the total expenditure by the United States for the construction of said irrigation system shall have been paid. The said annual assessments shall be paid in semi-annual installments, the first of which shall be due and payable on December 31st of the year for which the assessment is made and the second of which shall be due and payable on June 30th of the succeeding year. The District will annually levy against each assessable acre of land included therein and pay to the United States a sum equal to the assessment of the United States based on the above rates.

There has been no legislation enacted providing a moratorium for construction costs for the season of 1938 and there is no authority of law by which we may further delay these assessments after December 1938. It will, therefore, be necessary for you to make preparation for these assessments in accordance with the provisions of the public notice of November 1, 1930, as amended by the letter approved by the Department on April 20, 1931, and also as modified by the provisions of the acts of Congress as incorporated in the supplemental contracts with the three irrigation districts herein cited. The assessments against the lands of the irrigation districts for the season of 1938 are to become due and payable one-half on December 31, 1938, and one-half on June 30, 1939.

The assessments for construction charges against all lands of the Flathead irrigation project will be carefully studied by the Committee on Economic Survey at such time in the future as that committee visits the Flathead Indian Reservation. It is hoped that this study may be made during next year.

Sincerely yours,

WILLIAM ZIMMERMAN, JR.,
Assistant Commissioner.

Approved, July 16, 1938.

OSCAR L. CHAPMAN,
Assistant Secretary of the Interior.

[F. R. Doc. 38-2368; Filed, August 13, 1938; 9:42 a. m.]

MODIFICATION OF RULES AND REGULATIONS FOR OPERATION AND MAINTENANCE OF FLATHEAD INDIAN IRRIGATION PROJECT, MONTANA

AUGUST 3, 1937.

Mr. W. S. HANNA,
Supervising Engineer.

DEAR MR. HANNA: Reference is made to your letter of January 26 transmitting a resolution passed by the Board of Commissioners of the Flathead Irrigation District requesting a change in the practice which has been followed in the delivery of water to landowners who are farming more than one original farm unit or allotment.

Consideration has been given the rules and regulations governing the operation and maintenance of the Flathead Indian irrigation project approved by the Department on August 3, 1932. Section 4 of said rules and regulations provides as follows:

4. *Farm units.*—For the purpose of these rules and regulations and the delivery of water, a farm unit is defined as a tract in single contiguous ownership or allotment containing not less than one 40-acre subdivision of the Public Survey. In the case of leases a farm unit will be considered a tract in a single lease comprising one or more contiguous tracts.

There appears to be nothing in Section 4 as quoted above that makes it mandatory to consider each orignal farm unit as a single unit for the purpose of apportioning water but there is some question as to whether under that provision it would not be mandatory to consider each allotment containing not less than one 40-acre tract as a separate unit. With a view to clearing this uncertainty the rules and regulations approved on August 3, 1932 are hereby modified and the following language is substituted in lieu of the former Section 4:

4. *Farm units.*—For the purpose of these rules and regulations and for the delivery of water, a farm unit is defined as a contiguous area of land in single ownership containing not less than one 40-acre subdivision of the Public Survey regardless of its original status as a farm unit or allotment. In the case of leases a farm unit is defined as the contiguous area under a single lease.

Sincerely yours,

WILLIAM ZIMMERMAN, JR.,
Assistant Commissioner.

Approved, August 6, 1937.

OSCAR L. CHAPMAN,
Assistant Secretary of the Interior.

[F. R. Doc. 38-2369; Filed, August 13, 1938; 9:42 a. m.]

TITLE 26—INTERNAL REVENUE

BUREAU OF INTERNAL REVENUE

[T. D. 4851]

WEIGHTS FOR TESTING SCALES

To District Supervisors and Others Concerned:

Paragraph 1 of Treasury Decision 4780, approved December 3, 1937,[1] is hereby amended to read as follows:

Proprietors of distilleries; fruit distilleries; internal revenue bonded warehouses; industrial alcohol plants; alcohol bonded warehouses; denaturing plants; rectifying plants which taxpay rectified products by weight; and bonded wineries which fortify wines or taxpay wines by weight, will provide, at their own expense, a set of ten 50-pound cast iron test weights, which shall be certified by the National Bureau of Standards or State Departments of Weights and Measures as conforming with Class "C" requirements of the National Bureau of Standards; Provided, however, test weights need not be provided at wineries that (1) receive brandy or spirits-fruit exclusively by pipeline from a contiguous fruit distillery or internal revenue bonded warehouse where the spirits are gauged in a weighing tank immediately before transfer to the winery and are run directly into the fortifying tank containing the wine to be fortified, as provided in Paragraphs 260, 261 and 262 of Regulations No. 7; [2] or (2) taxpay wine by weight and have the scales used to weigh the wine checked and their accuracy certified to by State, County, or City Departments of Weights and Measures at intervals of not less than six

[1] 2 F. R. 2686 (3116 DI).
[2] 2 F. R. 2140 (2496 DI).

months. If the proprietor operates one or more of the enumerated establishments on the same or contiguous premises, only one set of test weights need be provided.

[SEAL] MILTON E. CARTER,
Acting Commissioner of Internal Revenue.

Approved, August 11, 1938.

ROSWELL MAGILL,
Acting Secretary of the Treasury.

[F. R. Doc. 38-2374; Filed, August 13, 1938; 12:10 p. m.]

TITLE 35—PARKS AND FORESTS

NATIONAL PARK SERVICE

HOT SPRINGS NATIONAL PARK

LOCAL SUBSIDIARY REGULATION

The following subsidiary regulation, issued under the authority of the Rules and Regulations approved by the Secretary of the Interior June 18, 1936 (1 F. R. 672), has been recommended by the superintendent and approved by the Director of the National Park Service, and is in force and effect within the boundaries of Hot Springs National Park.

Speed.—Speed of automobiles and other vehicles, except ambulances and Government cars on emergency trips, is limited to 15 miles per hour on all roads in the campground area.

Approved, August 5, 1938.

[SEAL] HILLORY A. TOLSON,
Acting Director.

[F. R. Doc. 38-2365; Filed, August 13, 1938; 9:40 a. m.]

TITLE 45—SECURITIES AND EXCHANGES

SECURITIES AND EXCHANGE COMMISSION

PUBLIC UTILITY HOLDING COMPANY ACT OF 1935

Form U-12 (I)-A, Statement Pursuant to Section 12 (i) of Public Utility Holding Company Act of 1935 by a Person Employed or Retained by a Registered Holding Company or a Subsidiary Thereof, adopted June 30, 1938, was filed with the Division of the Federal Register, The National Archives, on August 15, 1938, at 12:41 p. m. (F. R. Doc. 38-2391). Requests for copies should be addressed to the Securities and Exchange Commission.

PUBLIC UTILITY HOLDING COMPANY ACT OF 1935

Form U-12 (I)-B (Annual Statement), Statement pursuant to Section 12 (i) of Public Utility Holding Company Act of 1935 by a Person Regularly Employed or Retained by a Registered Holding Company or a Subsidiary Thereof, adopted June 30, 1938, was filed with the Division of the Federal Register, The National Archives, on August 15, 1938, at 12:41 p. m. (F. R. Doc. 38-2392). Requests for copies should be addressed to the Securities and Exchange Commission.

Notices

TREASURY DEPARTMENT.

Bureau of Customs.

[T. D. 49674]

PROTEST FILED AGAINST LIQUIDATION OF AN ENTRY COVERING CERTAIN COAL FROM RUSSIA

COLLECTORS OF CUSTOMS INSTRUCTED TO SUSPEND LIQUIDATION OF THE ENTRIES INVOLVED

To Collectors of Customs and Others Concerned:

Reference is made to Treasury Decision 49510, approved April 15, 1938, published in the weekly Treasury Decisions, Volume 73, No. 16, of April 21, 1938, proclaiming the classification of and rate of duty imposed upon coal of the kind described in said treasury decision.

Publication of the above-mentioned decision was occasioned by a complaint with respect to the classification of and rate of duty imposed upon the merchandise described in Treasury Decision 49510, filed under section 516 (b) of the Tariff Act of 1930 (U. S. C. title 19, sec. 1516 (b)) by the Philadelphia and Reading Coal and Iron Co., et al., American manufacturers, producers and wholesalers of such merchandise.

Notice of a desire to protest having been filed with the Secretary of the Treasury and a protest having been filed with the collector of customs, Boston, Mass. (No. 1010), against the liquidation on July 1, 1938, of consumption entry no. 08116 of May 26, 1938, in form and substance as in the statute provided, pending the decision of the United States Customs Court on the protest in question collectors of customs will suspend liquidation of all unliquidated entries covering coal of the kind described in Treasury Decision 49510, imported or withdrawn from warehouse after the expiration of 30 days after the publication of Treasury Decision 49510, and will comply in all respects, in connection with the liquidation or reliquidation of entries of such merchandise, with the provisions of section 516 (b) of the Tariff Act of 1930.

[SEAL] FRANK DOW,
Acting Commissioner of Customs.

Approved, August 10, 1938.

WAYNE C. TAYLOR,
Acting Secretary of the Treasury.

[F. R. Doc. 38-2388; Filed, August 15, 1938; 12:14 p. m.]

SECURITIES AND EXCHANGE COMMISSION.

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 11th day of August, A. D. 1938.

[File Nos. 43-138, 46-104]

IN THE MATTERS OF COPPER DISTRICT POWER COMPANY AND THE MIDDLE WEST CORPORATION

ORDER PERMITTING DECLARATION TO BECOME EFFECTIVE REGARDING THE ISSUE AND SALE OF NOTES AND APPROVING ACQUISITION OF NOTES

Copper District Power Company, a subsidiary of The Middle West Corporation, a registered holding company, having filed a declaration and one amendment, pursuant to Section 7 of the Public Utility Holding Company Act of 1935, regarding the issue and sale of six unsecured promissory notes aggregating $78,750, to be dated on the effective date of this declaration, to mature one year after the date thereof, each note to bear 4½% interest; and

The Middle West Corporation, a registered holding company, having filed an application, pursuant to Section 10 (a) (1) of the Act, for approval of the acquisition by it, of three of the aforementioned unsecured promissory notes aggregating $39,375 and in the principal amounts of $18,000, $15,750 and $5,625;

A joint hearing on said amended declaration and said application having been held[1] after appropriate notice; the record in these matters having been examined; and the Commission having made and filed its findings herein;

It is ordered, That said declaration as amended be and become effective on condition that the issue and sale of said notes be effected by declarant in substantial compliance with the terms and conditions and for the purposes represented by said amended declaration.

It is further ordered, That within ten days after the issue and sale of any of the said notes, the declarant shall file with this Commission a certificate of notification, showing that such issue and sale have been effected in accordance with the terms and conditions and for the purposes represented by said amended declaration.

It is further ordered, That the acquisition of such securities by the applicant, The Middle West Corporation, in the manner and subject to the terms set forth in said application be and the same is hereby approved.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 38-2378; Filed, August 13, 1938; 12:36 p. m.]

[1] 3 F. R. 1775 DI.

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 12th day of August 1938.

[File No. 1-957]

IN THE MATTER OF MARKET STREET RAILWAY COMPANY COMMON STOCK, $100 PAR VALUE, 6% CUMULATIVE PRIOR PREFERENCE STOCK, $100 PAR VALUE, 6% CUMULATIVE PREFERRED STOCK, $100 PAR VALUE, AND 6% NON-CUMULATIVE SECOND PREFERRED STOCK, $100 PAR VALUE

ORDER RELATIVE TO LISTING AND REGISTRATION

The Market Street Railway Company, pursuant to Section 12 (d) of the Securities Exchange Act of 1934, as amended, and Rule JD2 promulgated thereunder, having made application to the Commission to withdraw its Common Stock, $100 Par Value, 6% Cumulative Prior Preference Stock, $100 Par Value, 6% Cumulative Preferred Stock, $100 Par Value, and 6% Non-Cumulative Second Preferred Stock, $100 Par Value, from listing and registration on the San Francisco Stock Exchange; and

After appropriate notice, a hearing having been held [1] in this matter; and

The Commission, after due consideration of said application together with the evidence introduced at said hearing, having entered an order granting [2] said application effective at the close of the trading session on June 12, 1938 and having postponed the effective date of said order to August 12, 1938; and

The San Francisco Stock Exchange having made application to the Commission to extend unlisted trading privileges on said Exchange to the securities before named, which application was denied August 11, 1938 and said Exchange having represented to the Commission that it desires to file an application for a rehearing on the Commission's order of August 11, 1938 denying unlisted trading privileges to the 6% Cumulative Prior Preference Stock, $100 Par Value;

It is ordered, That the effective date of the order of the Commission granting the application of the Market Street Railway Company to withdraw its 6% Cumulative Prior Preference Stock, $100 Par Value from listing and registration on the San Francisco Stock Exchange be and the same is postponed from August 12, 1938 until the close of the trading session on October 11, 1938.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 38-2376; Filed, August 13, 1938; 12:36 p. m.]

[1] 3 F. R. 1434 DI.
[2] 3 F. R. 1870 DI.

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 12th day of August 1938.

[File No. 7-248]

IN THE MATTER OF ELK HORN COAL CORPORATION FIRST PREFERRED STOCK, $100 PAR VALUE, SECOND PREFERRED STOCK, $100 PAR VALUE, AND COMMON STOCK, NO PAR VALUE

ORDER DENYING APPLICATION

Continuance of unlisted trading privileges on the Baltimore Stock Exchange in Elk Horn Coal Corporation, $50 Par 6% Non-Cumulative Preferred Stock and Common Stock, No Par Value, having been permitted by action of this Commission on October 1, 1934; and

Said Exchange, pursuant to paragraph (b) of Rule JF2, having applied to this Commission setting forth that there are being effected changes in said security other than those specified in paragraph (a) of said Rule and asking the Commission to determine that said security after said changes is substantially equivalent to the said security heretofore admitted to unlisted trading privileges; and

The Commission having considered the matter;

It is ordered, Pursuant to Section 12 (f) and 23 (a) of the Securities Exchange Act of 1934, as amended, and Rule JF2 (b) promulgated thereunder, that the determination sought by said application be and the same is hereby denied.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 38-2377; Filed, August 13, 1938; 12:36 p. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 12th day of August, A. D. 1938.

[File No. 43-136]

IN THE MATTER OF WEST PENN POWER COMPANY

ORDER PERMITTING DECLARATION TO BECOME EFFECTIVE

West Penn Power Company, a subsidiary company of American Water Works and Electric Company, Incorporated, a registered holding company, having filed a declaration pursuant to Section 7 of the Public Utility Holding Company Act of 1935 regarding the issue and sale of $17,000,000 aggregate principal amount of its First Mortgage Bonds, Series J, 3¼% (due August 1, 1968); public hearings, having been held on said declaration after appropriate notice, and the Commission having considered the record in this matter and having made its findings herein:

It is ordered, That said declaration be and become effective forthwith subject to the terms and for the purposes represented thereby, except that the Commission reserves jurisdiction to determine, at a later date, whether certain fees to be paid to W. C. Langley & Co. are or are not reasonable; and

It is further ordered, That no fees be paid to W. C. Langley & Co. pending further order of this Commission.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 38-2379; Filed, August 13, 1938; 12:36 p. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 12th day of August, A. D. 1938.

IN THE MATTER OF L. P. ATWATER, DOING BUSINESS AS L. P. ATWATER & COMPANY, 926 MCBIRNEY BUILDING, TULSA, OKLAHOMA

ORDER DENYING REGISTRATION

L. P. Atwater, doing business as L. P. Atwater & Company, a sole proprietorship, hereinafter called the applicant, having filed with the Commission on January 3, 1938, an application for registration on Form 3-M pursuant to Rule MB1 of the Commission's rules; and registration having been postponed pending final determination as to whether registration should be denied or postponed; and

The Commission, on January 28, 1938, having instituted proceedings on the question on denial and/or postponement of registration pursuant to Section 15 (b) of the Securities Exchange Act of 1934, as amended; and the said matter, after the applicant's waiver of the requirement of service of notice, having come on for hearing on February 3, 1938, at Tulsa, Oklahoma; and

The Commission finding that denial of said registration is in the public interest, and that applicant in its application for registration has wilfully made or caused to be made a statement which was at the time and in the light of the circumstances under which it was made, false and misleading with respect to a material fact; and that applicant has wilfully violated the provisions of Section 15 (a) of the Securities Exchange Act of 1934, as amended, all as more fully set forth in the Commission's Findings of Fact and Opinion, this day issued; and the Commission having duly considered the mat-

ter and being fully advised in the premises;

It is ordered, Pursuant to Section 15 (b) of the Securities Exchange Act of 1934, as amended, that the application of L. P. Atwater, doing business as L. P. Atwater & Company, as broker or dealer transacting business on over-the-counter markets be and the same is hereby denied.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 38-2380; Filed, August 13, 1938; 12:37 p. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 12th day of August, A. D. 1938.

IN THE MATTER OF CONTINENTAL ROYALTIES CORPORATION, 926 McBIRNEY BUILDING, TULSA, OKLAHOMA

ORDER DENYING REGISTRATION

Continental Royalties Corporation, hereinafter called the applicant, having filed with the Commission on January 3, 1938, an application for registration on Form 3-M pursuant to Rule MB1 of the Commission's rules; and registration having been postponed pending final determination as to whether registration should be denied or postponed; and

The Commission, on January 28, 1938, having instituted proceedings on the question of denial and/or postponement of registration pursuant to Section 15 (b) of the Securities Exchange Act of 1934, as amended; and the said matter, after the applicant's waiver of the requirement of service of notice, having come on for hearing on February 3, 1938, at Tulsa, Oklahoma; and the Commission having duly considered the matter; and the Commission finding that denial of said registration is in the public interest and that applicant in its application has wilfully made a statement which was at the time and in the light of the circumstances under which it was made, false, or misleading with respect to a material fact, all as more fully set forth in the Commission's Findings of Fact and Opinion this day issued; and the Commission being duly advised in the premises;

It is ordered, pursuant to Section 15 (b) of the Securities Exchange Act of 1934, as amended, that the application of Continental Royalties Corporation, as broker or dealer transacting business on over-the-counter markets be and the same is hereby denied.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 38-2375; Filed, August 13, 1938; 12:36 p. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 12th day of August 1938.

[File No. 7-249]

IN THE MATTER OF STANDARD GAS AND ELECTRIC COMPANY 6% GOLD DEBENTURES, DUE FEBRUARY 1, 1957

ORDER GRANTING APPLICATION

Continuance of unlisted trading privileges on the New York Curb Exchange in Standard Power and Light Corporation 6% Gold Debentures, due 1957, having been permitted by action of this Commission on October 1, 1934; and

Said Exchange, pursuant to paragraph (b) of Rule JF2, having applied to this Commission setting forth that there are being effected changes in said security other than those specified in paragraph (a) of said Rule and asking the Commission to determine that said security after said changes is substantially equivalent to the said security heretofore admitted to unlisted trading privileges; and

The Commission having considered the matter;

It is ordered, Pursuant to Section 12 (f) and 23 (a) of the Securities Exchange Act of 1934, as amended, and Rule JF2 (b) promulgated thereunder, that the determination sought by said application be and the same is hereby made, effective upon the exchange in accordance with the Plan of Reorganization dated November 1, 1937.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 38-2390; Filed, August 15, 1938; 12:41 p. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 13th day of August 1938.

IN THE MATTER OF HUFF AND HASKINS, INC., 701-707 BRISBANE BUILDING, BUFFALO, NEW YORK

ORDER CANCELLING REGISTRATION

Huff and Haskins, Inc., hereinafter called the registrant, having filed with the Commission on June 14, 1935 an application for registration on Form 1-M pursuant to Rule MA2 of the Commission's rules then governing over-the-counter markets; and the said registration having become effective January 1, 1936 in accordance with said rules, and thereafter having become a registration under Section 15 (b) of the Securities Exchange Act of 1934, as amended, by virtue of Section 10 of the amending statutes; and

The Commission finding, on due notification, that the registrant has ceased doing business as a broker or dealer;

It is ordered, Pursuant to Section 15 (b) of the Securities Exchange Act of 1934, as amended, that the registration of Huff and Haskins, Inc., as a broker and dealer transacting business on the over-the-counter markets, be and the same is hereby cancelled.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 38-2389; Filed, August 15, 1938; 12:41 p. m.]